

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1627

By: Paxton of the Senate

and

Hilbert of the House

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9 An Act relating to multiple versions of statutes;
10 amending, merging, consolidating, and repealing
11 multiple versions of statutes; amending 10A O.S.
12 2021, Section 1-2-101, as amended by Section 1,
13 Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section
14 1-2-101); repealing 10A O.S. 2021, Section 1-2-101,
15 as amended by Section 1, Chapter 260, O.S.L. 2025
16 (10A O.S. Supp. 2025, Section 1-2-101); repealing 10A
17 O.S. 2021, Section 1-2-101, as amended by Section
18 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp. 2025,
19 Section 1-2-101); amending 21 O.S. 2021, Section
20 13.1, as last amended by Section 1, Chapter 162,
21 O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1);
22 repealing 21 O.S. 2021, Section 13.1, as amended by
23 Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
24 2025, Section 13.1); repealing 21 O.S. 2021, Section
13.1, as last amended by Section 2, Chapter 18,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1);
repealing 21 O.S. 2021, Section 13.1, as last amended
by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp.
2025, Section 13.1); amending 21 O.S. 2021, Section
425, as amended by Section 370, Chapter 486, O.S.L.
2025 (21 O.S. Supp. 2025, Section 425); repealing 21
O.S. 2021, Section 425, as amended by Section 2,
Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025, Section
425); amending 21 O.S. 2021, Section 540A, as amended
by Section 192, Chapter 486, O.S.L. 2025 (21 O.S.
Supp. 2025, Section 540A); repealing 21 O.S. 2021,
Section 540A, as amended by Section 1, Chapter 224,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A);
amending 21 O.S. 2021, Section 644, as last amended

1 by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
2 2025, Section 644); repealing 21 O.S. 2021, Section
3 644, as last amended by Section 1, Chapter 147,
4 O.S.L. 2025 (21 O.S. Supp. 2025, Section 644);
5 repealing 21 O.S. 2021, Section 644, as last amended
6 by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp.
7 2025, Section 644); repealing 21 O.S. 2021, Section
8 644, as last amended by Section 2, Chapter 162,
9 O.S.L. 2025 (21 O.S. Supp. 2025, Section 644);
10 amending 21 O.S. 2021, Section 650, as amended by
11 Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
12 2025, Section 650); repealing 21 O.S. 2021, Section
13 650, as amended by Section 1, Chapter 32, O.S.L. 2025
14 (21 O.S. Supp. 2025, Section 650); amending 21 O.S.
15 2021, Section 748, as last amended by Section 20,
16 Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
17 748); repealing 21 O.S. 2021, Section 748, as last
18 amended by Section 2, Chapter 291, O.S.L. 2025 (21
19 O.S. Supp. 2025, Section 748); amending 21 O.S. 2021,
20 Section 843.5, as last amended by Section 8, Chapter
21 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5);
22 repealing 21 O.S. 2021, Section 843.5, as amended by
23 Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
24 2025, Section 843.5); repealing 21 O.S. 2021, Section
843.5, as last amended by Section 1, Chapter 281,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5);
amending 21 O.S. 2021, Section 852.1, as amended by
Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
2025, Section 852.1); repealing 21 O.S. 2021, Section
852.1, as amended by Section 1, Chapter 113, O.S.L.
2025 (21 O.S. Supp. 2025, Section 852.1); amending 21
O.S. 2021, Section 856.3, as amended by Section 159,
Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
856.3); repealing 21 O.S. 2021, Section 856.3, as
amended by Section 1, Chapter 108, O.S.L. 2025 (21
O.S. Supp. 2025, Section 856.3); repealing 21 O.S.
2021, Section 888, as amended by Section 4, Chapter
455, O.S.L. 2002; amending 21 O.S. 2021, Section
1021.2, as last amended by Section 49, Chapter 486,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 1021.2);
repealing 21 O.S. 2021, Section 1021.2, as amended by
Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp.
2025, Section 1021.2); amending 21 O.S. 2021, Section
1024.1, as last amended by Section 4, Chapter 29,
O.S.L. 2025 (21 O.S. Supp. 2025, Section 1024.1);
repealing 21 O.S. 2021, Section 1024.1, as amended by
Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp.

2025, Section 1024.1); amending 21 O.S. 2021, Section 1031, as last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1031); repealing 21 O.S. 2021, Section 1031, as last amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1031); amending 21 O.S. 2021, Section 1040.12a, as last amended by Section 26, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a); repealing 21 O.S. 2021, Section 1040.12a, as amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1040.12a); repealing 21 O.S. 2021, Section 1040.12a, as last amended by Section 3, Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a); amending 21 O.S. 2021, Section 1040.13b, as last amended by Section 1, Chapter 23, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b); repealing 21 O.S. 2021, Section 1040.13b, as last amended by Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b); amending 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 365, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1115, as amended by Section 5, Chapter 455, O.S.L. 2002; amending 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); repealing 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); repealing 21 O.S. 2021, Section 1123, as last amended by Section 38, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); amending 21 O.S. 2021, Section 1173, as last amended by Section 1, Chapter 145, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173); repealing 21 O.S. 2021, Section 1173, as last amended by Section 118, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173); amending 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); repealing 21 O.S. 2021, Section 1277, as amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); amending 21 O.S. 2021, Section 1289.16, as amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp.

2025, Section 1289.16); repealing 21 O.S. 2021,
Section 1289.16, as amended by Section 131, Chapter
486, O.S.L. 2025 (21 O.S. Supp. 2025, Section
1289.16); repealing 21 O.S. 2021, Section 1290.5, as
amended by Section 5, Chapter 146, O.S.L. 2021;
repealing 21 O.S. 2021, Section 1451, as amended by
Section 1, Chapter 221, O.S.L. 2016; repealing 21
O.S. 2021, Section 1521, as amended by Section 2,
Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,
Section 1541.2, as amended by Section 5, Chapter 221,
O.S.L. 2016; repealing 21 O.S. 2021, Section 1541.3,
as amended by Section 6, Chapter 221, O.S.L. 2016;
repealing 21 O.S. 2021, Section 1577, as amended by
Section 11, Chapter 221, O.S.L. 2016; repealing 21
O.S. 2021, Section 1578, as amended by Section 12,
Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,
Section 1579, as amended by Section 13, Chapter 221,
O.S.L. 2016; repealing 21 O.S. 2021, Section 1621, as
amended by Section 15, Chapter 221, O.S.L. 2016;
repealing 21 O.S. 2021, Section 1704, as amended by
Section 16, Chapter 221, O.S.L. 2016; repealing 21
O.S. 2021, Section 1705, as amended by Section 17,
Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,
Section 1713, as amended by Section 18, Chapter 221,
O.S.L. 2016; repealing 21 O.S. 2021, Section 1731, as
amended by Section 19, Chapter 221, O.S.L. 2016;
amending 21 O.S. 2021, Section 1903, as amended by
Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp.
2025, Section 1903); repealing 21 O.S. 2021, Section
1903, as amended by Section 62, Chapter 486, O.S.L.
2025 (21 O.S. Supp. 2025, Section 1903); amending 47
O.S. 2021, Section 11-902, as amended by Section 1,
Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section
11-902); repealing 47 O.S. 2021, Section 11-902, as
amended by Section 3, Chapter 172, O.S.L. 2025 (47
O.S. Supp. 2025, Section 11-902); repealing 47 O.S.
2021, Section 11-902, as amended by Section 6,
Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section
11-902); repealing 47 O.S. 2021, Section 11-902, as
amended by Section 33, Chapter 486, O.S.L. 2025 (47
O.S. Supp. 2025, Section 11-902); and declaring an
emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-2-101, as
2 amended by Section 1, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025,
3 Section 1-2-101), is amended to read as follows:

4 Section 1-2-101. A. 1. The Department of Human Services shall
5 establish a statewide centralized hotline for the reporting of child
6 abuse or neglect to the Department.

7 2. The Department shall provide hotline-specific training
8 including, but not limited to, interviewing skills, customer service
9 skills, narrative writing, necessary computer systems, making case
10 determinations, and identifying priority situations.

11 3. The Department is authorized to contract with third parties
12 in order to train hotline workers.

13 4. The Department shall develop a system to track the number of
14 calls received, and of that number:

- 15 a. the number of calls screened out,
- 16 b. the number of referrals assigned,
- 17 c. the number of calls received by persons unwilling to
18 disclose basic personal information including, but not
19 limited to, first and last name, and
- 20 d. the number of calls in which the allegations were
21 later found to be unsubstantiated or ruled out.

22 5. The Department shall electronically record each referral
23 received by the hotline and establish a secure means of retaining
24 the recordings for twelve (12) months. The recordings shall be

1 confidential and subject to disclosure only if a court orders the
2 disclosure of the referral. The Department shall redact any
3 information identifying the reporting party unless otherwise ordered
4 by the court.

5 6. Each referral received by the hotline alleging abuse or
6 neglect wherein the alleged perpetrator is someone other than a
7 person responsible for the child's health, safety, or welfare shall
8 be immediately reported to the appropriate local law enforcement
9 agency, in writing, for the purpose of conducting a possible
10 criminal investigation. The hotline supervisor shall ensure that a
11 report has been made upon receipt of a referral prior to the
12 referral being screened out. The Department shall maintain a record
13 of its transmission of each report to law enforcement.

14 B. 1. Every person having reason to believe that a child under
15 the age of eighteen (18) years is a victim of abuse or neglect shall
16 report the matter immediately to the Department of Human Services.
17 Reports shall be made to the hotline provided for in subsection A of
18 this section. Any allegation of abuse or neglect reported in any
19 manner to a county office shall immediately be referred to the
20 hotline by the Department. Provided, however, that in actions for
21 custody by abandonment, provided for in Section 2-117 of Title 30 of
22 the Oklahoma Statutes, there shall be no reporting requirement.

23 2. a. Every school employee having reason to believe that a
24 student under the age of eighteen (18) years is a

1 victim of abuse or neglect shall report the matter
2 immediately to the Department of Human Services and
3 local law enforcement. Reports to the Department
4 shall be made to the hotline provided for in
5 subsection A of this section. Any allegation of abuse
6 or neglect reported in any manner to a county office
7 shall immediately be referred to the hotline by the
8 Department. Provided, however, that in actions for
9 custody by abandonment, provided for in Section 2-117
10 of Title 30 of the Oklahoma Statutes, there shall be
11 no reporting requirement.

12 b. Every school employee having reason to believe that a
13 student age eighteen (18) years or older is a victim
14 of abuse or neglect shall report the matter
15 immediately to local law enforcement.

16 c. In reports required by subparagraph a or b of this
17 paragraph, local law enforcement shall keep
18 confidential and redact any information identifying
19 the reporting school employee unless otherwise ordered
20 by the court. A school employee with knowledge of a
21 report required by subparagraph a or b of this
22 paragraph shall not disclose information identifying
23 the reporting school employee unless otherwise ordered
24

1 by the court or as part of an investigation by local
2 law enforcement or the Department.

3 3. Every physician, surgeon, or other health care professional
4 including doctors of medicine, licensed osteopathic physicians,
5 residents and interns, or any other health care professional or
6 midwife involved in the prenatal care of expectant mothers or the
7 delivery or care of infants shall promptly report to the Department
8 instances in which an infant tests positive for alcohol or a
9 controlled dangerous substance. This shall include infants who are
10 diagnosed with Neonatal Abstinence Syndrome or Fetal Alcohol
11 Spectrum Disorder.

12 4. No privilege or contract shall relieve any person from the
13 requirement of reporting pursuant to this section.

14 5. The reporting obligations under this section are individual,
15 and no employer, supervisor, administrator, governing body or entity
16 shall interfere with the reporting obligations of any employee or
17 other person or in any manner discriminate or retaliate against the
18 employee or other person who in good faith reports suspected child
19 abuse or neglect, or who provides testimony in any proceeding
20 involving child abuse or neglect. Any employer, supervisor,
21 administrator, governing body or entity who discharges,
22 discriminates or retaliates against the employee or other person
23 shall be liable for damages, costs and attorney fees. If a child
24 who is the subject of the report or other child is harmed by the

1 discharge, discrimination or retaliation described in this
2 paragraph, the party harmed may file an action to recover damages,
3 costs and attorney fees.

4 6. Every physician, surgeon, other health care professional or
5 midwife making a report of abuse or neglect as required by this
6 subsection or examining a child to determine the likelihood of abuse
7 or neglect and every hospital or related institution in which the
8 child was examined or treated shall provide, upon request, copies of
9 the results of the examination or copies of the examination on which
10 the report was based and any other clinical notes, X-rays,
11 photographs, and other previous or current records relevant to the
12 case to law enforcement officers conducting a criminal investigation
13 into the case and to employees of the Department of Human Services
14 conducting an investigation of alleged abuse or neglect in the case.

15 C. ~~Any~~ Except as provided in Section 593 of Title 21 of the
16 Oklahoma Statutes, any person who knowingly and willfully fails to
17 promptly report suspected child abuse or neglect or who interferes
18 with the prompt reporting of suspected child abuse or neglect may be
19 reported to local law enforcement for criminal investigation and,
20 upon conviction thereof, shall be guilty of a misdemeanor. ~~Any~~
21 Except as provided in Section 593 of Title 21 of the Oklahoma
22 Statutes, any person with prolonged knowledge of ongoing child abuse
23 or neglect who knowingly and willfully fails to promptly report such
24 knowledge may be reported to local law enforcement for criminal

1 investigation and, upon conviction thereof, shall be guilty of a
2 Class D1 felony offense and shall be punished by imprisonment as
3 provided for in subsections B through F of Section 20N of Title 21
4 of the Oklahoma Statutes. For the purposes of this paragraph,
5 "prolonged knowledge" shall mean knowledge of at least six (6)
6 months of child abuse or neglect.

7 D. 1. Any person who knowingly and willfully makes a false
8 report pursuant to the provisions of this section or a report that
9 the person knows lacks factual foundation may be reported to local
10 law enforcement for criminal investigation and, upon conviction
11 thereof, shall be guilty of a misdemeanor.

12 2. If a court determines that an accusation of child abuse or
13 neglect made during a child custody proceeding is false and the
14 person making the accusation knew it to be false at the time the
15 accusation was made, the court may impose a fine, not to exceed Five
16 Thousand Dollars (\$5,000.00) and reasonable attorney fees incurred
17 in recovering the sanctions, against the person making the
18 accusation. The remedy provided by this paragraph is in addition to
19 paragraph 1 of this subsection or to any other remedy provided by
20 law.

21 E. Nothing contained in this section shall be construed to
22 exempt or prohibit any person from reporting any suspected child
23 abuse or neglect pursuant to subsection B of this section.
24

1 SECTION 2. REPEALER 10A O.S. 2021, Section 1-2-101, as
2 amended by Section 1, Chapter 260, O.S.L. 2025 (10A O.S. Supp. 2025,
3 Section 1-2-101), is hereby repealed.

4 SECTION 3. REPEALER 10A O.S. 2021, Section 1-2-101, as
5 amended by Section 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp.
6 2025, Section 1-2-101), is hereby repealed.

7 SECTION 4. AMENDATORY 21 O.S. 2021, Section 13.1, as
8 last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp.
9 2025, Section 13.1), is amended to read as follows:

10 Section 13.1. Persons convicted of:

11 1. First degree murder as provided for in Section 701.7 of this
12 title;

13 2. Second degree murder as provided for in Section 701.8 of
14 this title;

15 3. Manslaughter in the first degree as provided for in Section
16 711 of this title;

17 4. Poisoning with intent to kill as provided for in Section 651
18 of this title;

19 5. Shooting with intent to kill, use of a vehicle to facilitate
20 use of a firearm, crossbow or other weapon, assault, battery, or
21 assault and battery with a deadly weapon or by other means likely to
22 produce death or great bodily harm, as provided for in Sections 644
23 and 652 of this title;

24

1 6. Assault with intent to kill as provided for in Section 653
2 of this title;

3 7. Conjoint robbery as provided for in Section 800 of this
4 title;

5 8. Robbery with a dangerous weapon as provided for in Section
6 801 of this title;

7 9. First degree robbery as provided for in Section 797 of this
8 title;

9 10. First degree rape as provided for in Section 1111 or 1114
10 of this title;

11 11. First degree arson as provided for in Section 1401 of this
12 title;

13 12. First degree burglary as provided for in Section 1431 of
14 this title;

15 13. Bombing as provided for in Section 1767.1 of this title;

16 14. Any crime against a child as provided for in Section 843.5
17 of this title;

18 15. Forcible sodomy as provided for in Section 888 of this
19 title;

20 16. Child sexual abuse material or aggravated child sexual
21 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,
22 1024.2, or 1040.12a of this title;

23 17. Child sex trafficking as defined in Section 1030 of this
24 title;

1 18. Lewd molestation of a child as provided for in Section 1123
2 of this title;

3 19. Abuse of a vulnerable adult as defined in Section 10-103 of
4 Title 43A of the Oklahoma Statutes;

5 20. Aggravated trafficking as provided for in subsection C of
6 Section 2-415 of Title 63 of the Oklahoma Statutes;

7 21. Aggravated assault and battery as provided for in Section
8 646 of this title upon any person defending another person from
9 assault and battery; ~~or~~

10 22. Human trafficking as defined in Section 748 of this title;

11 23. Accessory to murder in the first degree or accessory to
12 murder in the second degree as provided for in Section 175 of this
13 title; or

14 24. Discharging a firearm at or into a dwelling or building
15 used for public or business purposes, as provided for in Section
16 1289.17A of this title,

17 or any attempt, conspiracy, or solicitation thereof, shall be
18 required to serve not less than eighty-five percent (85%) of any
19 sentence of imprisonment imposed by the judicial system prior to
20 becoming eligible for consideration for parole. Persons convicted
21 of these offenses shall not be eligible for earned credits or any
22 other type of credits which have the effect of reducing the length
23 of the sentence to less than eighty-five percent (85%) of the
24 sentence imposed.

1 SECTION 5. REPEALER 21 O.S. 2021, Section 13.1, as
2 amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
3 Section 13.1), is hereby repealed.

4 SECTION 6. REPEALER 21 O.S. 2021, Section 13.1, as last
5 amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025,
6 Section 13.1), is hereby repealed.

7 SECTION 7. REPEALER 21 O.S. 2021, Section 13.1, as last
8 amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025,
9 Section 13.1), is hereby repealed.

10 SECTION 8. AMENDATORY 21 O.S. 2021, Section 425, as
11 amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
12 2025, Section 425), is amended to read as follows:

13 Section 425. A. Any person who engages in a pattern of
14 criminal offenses in two or more counties or municipalities in this
15 state or who attempts or conspires with others to engage in a
16 pattern of criminal offenses shall, upon conviction, be guilty of a
17 Class D1 felony offense punishable by imprisonment as provided for
18 in subsections B through F of Section 20N of this title, or by a
19 fine ~~in an amount~~ not more than Twenty-five Thousand Dollars
20 (\$25,000.00), or by both such fine and imprisonment. Such
21 punishment shall be in addition to any penalty imposed for any
22 offense involved in the pattern of criminal offenses. Double
23 jeopardy shall attach upon conviction.

24

1 B. For purposes of this ~~act~~ this section and Section 125.1 of
2 Title 22 of the Oklahoma Statutes, "pattern of criminal offenses"
3 means:

4 1. Two or more criminal offenses are committed that are part of
5 the same plan, scheme, or adventure; ~~or~~

6 2. A sequence of two or more of the same criminal offenses are
7 committed and are not separated by an interval of more than thirty
8 (30) days between the first and second offense, the second and
9 third, and so on; or

10 3. Two or more criminal offenses are committed, each proceeding
11 from or having as an antecedent element a single prior incident or
12 pattern of fraud, robbery, burglary, theft, identity theft, receipt
13 of stolen property, false personation, false pretenses, obtaining
14 property by trick or deception, taking a credit or debit card
15 without consent, or the making, transferring, or receiving of a
16 false or fraudulent identification card.

17 C. Jurisdiction and venue for a pattern of criminal offenses
18 occurring in multiple counties in this state shall be determined as
19 provided in Section ~~4~~ 125 of ~~this act~~ Title 22 of the Oklahoma
20 Statutes.

21 SECTION 9. REPEALER 21 O.S. 2021, Section 425, as
22 amended by Section 2, Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025,
23 Section 425), is hereby repealed.

1 SECTION 10. AMENDATORY 21 O.S. 2021, Section 540A, as
2 amended by Section 192, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
3 2025, Section 540A), is amended to read as follows:

4 Section 540A. A. Any operator of a motor vehicle who has
5 received a visual and audible signal, a flashing red light, flashing
6 red and blue lights, flashing blue and white lights, or any other
7 combination of flashing red, blue, and white lights, and a siren
8 from a peace officer driving a motor vehicle showing the same to be
9 an official police, sheriff, highway patrol or state game ranger
10 vehicle directing the operator to bring the vehicle to a stop and
11 who willfully increases the speed or extinguishes the lights of the
12 vehicle in an attempt to elude such peace officer, or willfully
13 attempts in any other manner to elude the peace officer, or who does
14 elude such peace officer, is guilty of a misdemeanor. The peace
15 officer, while attempting to stop a violator of this section, may
16 communicate a request for the assistance of other peace officers
17 from any office, department or agency. Any peace officer within
18 this state having knowledge of such request is authorized to render
19 such assistance in stopping the violator and may effect an arrest
20 under this section upon probable cause. Violation of this
21 subsection shall constitute a misdemeanor and shall be punishable by
22 not more than one (1) year imprisonment in the county jail or by a
23 fine of not less than One Hundred Dollars (\$100.00) nor more than
24 Two Thousand Dollars (\$2,000.00) or by both such fine and

1 imprisonment. A second or subsequent violation of this subsection
2 shall be punishable by not more than one (1) year in the county
3 jail, or by a fine of not less than Five Hundred Dollars (\$500.00)
4 nor more than Five Thousand Dollars (\$5,000.00) or both such fine
5 and imprisonment.

6 B. Any person who violates the provisions of subsection A of
7 this section in such manner as to endanger any other person shall be
8 deemed guilty of a Class C1 felony offense punishable by
9 imprisonment as provided for in subsections B through E of Section
10 20L of this title, or by a fine ~~of~~ not less than One Thousand
11 Dollars (\$1,000.00) nor more than Five Thousand Dollars (\$5,000.00),
12 or by both such fine and imprisonment.

13 C. 1. Any person who causes an accident, while eluding or
14 attempting to elude an officer, resulting in great bodily injury to
15 any other person while driving or operating a motor vehicle within
16 this state and who is in violation of the provisions of subsection A
17 of this section may be charged with a violation of the provisions of
18 this subsection. Any person who is convicted of a violation of the
19 provisions of this subsection shall be deemed guilty of a Class C1
20 felony offense punishable by imprisonment as provided for in
21 subsections B through E of Section 20L of this title, and a fine of
22 not more than Five Thousand Dollars (\$5,000.00).

23 2. As used in this subsection, "great bodily injury" means
24 bodily injury which creates a substantial risk of death or which

1 causes serious, permanent disfigurement or protracted loss or
2 impairment of the function of any bodily member or organ.

3 SECTION 11. REPEALER 21 O.S. 2021, Section 540A, as
4 amended by Section 1, Chapter 224, O.S.L. 2025 (21 O.S. Supp. 2025,
5 Section 540A), is hereby repealed.

6 SECTION 12. AMENDATORY 21 O.S. 2021, Section 644, as
7 last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
8 2025, Section 644), is amended to read as follows:

9 Section 644. A. Assault shall be punishable by imprisonment in
10 a county jail not exceeding ninety (90) days, or by a fine not more
11 than Five Hundred Dollars (\$500.00), or by both such fine and
12 imprisonment.

13 B. Assault and battery shall be punishable by imprisonment in a
14 county jail not exceeding six (6) months, or by a fine not more than
15 One Thousand Dollars (\$1,000.00), or by both such fine and
16 imprisonment.

17 C. Any person who commits any assault and battery against a
18 current or former intimate partner or a family or household member
19 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes
20 shall be guilty of domestic abuse. Upon conviction, the defendant
21 shall be punished by imprisonment in the county jail for not more
22 than one (1) year, or by a fine not exceeding Five Thousand Dollars
23 (\$5,000.00), or by both such fine and imprisonment. Upon conviction
24 for a second or subsequent offense, the person shall be guilty of a

1 Class B5 felony offense and shall be punished by imprisonment in the
2 custody of the Department of Corrections for not more than four (4)
3 years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00),
4 or by both such fine and imprisonment. The provisions of Section
5 51.1 of this title shall apply to any second or subsequent offense.

6 D. 1. ~~Any person who, with intent to do bodily harm and~~
7 ~~without justifiable or excusable cause, commits any assault,~~
8 ~~battery, or assault and battery upon an intimate partner or a family~~
9 ~~or household member as defined by Section 60.1 of Title 22 of the~~
10 ~~Oklahoma Statutes with any sharp or dangerous weapon, upon~~
11 ~~conviction, is guilty of domestic assault or domestic assault and~~
12 ~~battery with a dangerous weapon which shall be a Class B3 felony~~
13 ~~offense punishable by imprisonment in the custody of the Department~~
14 ~~of Corrections not exceeding ten (10) years, or by imprisonment in a~~
15 ~~county jail not exceeding one (1) year. The provisions of Section~~
16 ~~51.1 of this title shall apply to any second or subsequent~~
17 ~~conviction for a violation of this paragraph.~~

18 2. Any person who, with intent to do bodily harm and without
19 such justifiable or excusable cause, ~~shoots~~ commits any assault and
20 battery upon an intimate partner or a family or household member as
21 defined by Section 60.1 of Title 22 of the Oklahoma Statutes by
22 means of any deadly weapon or by such other means or force that is
23 likely to produce death shall, upon conviction, be guilty of
24 domestic assault and battery with a deadly weapon which shall be a

1 Class A3 felony offense punishable by imprisonment in the custody of
2 the Department of Corrections not exceeding life. The provisions of
3 Section 51.1 of this title shall apply to any second or subsequent
4 conviction for a violation of this ~~paragraph~~ subsection.

5 E. 1. Any person convicted of domestic abuse committed against
6 a pregnant woman with knowledge of the pregnancy shall be guilty of
7 a Class B5 felony offense punishable by imprisonment in the custody
8 of the Department of Corrections for not more than five (5) years.

9 2. Any person convicted of a second or subsequent offense of
10 domestic abuse against a pregnant woman with knowledge of the
11 pregnancy shall be guilty of a Class A3 felony offense punishable by
12 imprisonment in the custody of the Department of Corrections for not
13 less than ten (10) years.

14 3. Any person convicted of domestic abuse committed against a
15 pregnant woman with knowledge of the pregnancy and a miscarriage
16 occurs or injury to the unborn child occurs shall be guilty of a
17 Class A1 felony offense punishable by imprisonment in the custody of
18 the Department of Corrections for not less than twenty (20) years.

19 F. Any person convicted of domestic abuse as defined in
20 subsection C of this section that results in great bodily injury to
21 the victim shall be guilty of a Class B3 felony offense and punished
22 by imprisonment in the custody of the Department of Corrections for
23 not more than ten (10) years, or by imprisonment in the county jail
24 for not more than one (1) year. The provisions of Section 51.1 of

1 this title shall apply to any second or subsequent conviction of a
2 violation of this subsection.

3 G. Any person convicted of domestic abuse as defined in
4 subsection C of this section that was committed in the presence of a
5 child shall be punished by imprisonment in the county jail for not
6 less than six (6) months nor more than one (1) year, or by a fine
7 not exceeding Five Thousand Dollars (\$5,000.00), or by both such
8 fine and imprisonment. Any person convicted of a second or
9 subsequent domestic abuse as defined in subsection C of this section
10 that was committed in the presence of a child shall be guilty of a
11 Class B5 felony offense and shall be punished by imprisonment in the
12 custody of the Department of Corrections for not less than one (1)
13 year nor more than five (5) years, or by a fine not exceeding Seven
14 Thousand Dollars (\$7,000.00), or by both such fine and imprisonment.
15 The provisions of Section 51.1 of this title shall apply to any
16 second or subsequent offense. For every conviction of a domestic
17 abuse crime in violation of any provision of this section committed
18 against an intimate partner or a family or household member as
19 defined by Section 60.1 of Title 22 of the Oklahoma Statutes, the
20 court shall:

21 1. Specifically order as a condition of a suspended or deferred
22 sentence that a defendant ~~participate in counseling or~~ undergo
23 treatment to bring about the cessation of domestic abuse as
24 specified in paragraph 2 of this subsection;

1 2. a. The court shall require the defendant to complete an
2 assessment and follow the recommendations of a
3 batterers' intervention program to attend a fifty-two-
4 week batterers' intervention program or a pilot
5 batterers' intervention program, if available,
6 certified by the Attorney General.

7 b. If the defendant ~~is ordered to participate~~
8 participates in a batterers' intervention program, the
9 ~~order~~ program shall require the defendant to attend
10 ~~the program~~ for a minimum of fifty-two (52) weeks,
11 complete the program, and be evaluated before and
12 after attendance of the program by program staff.
13 Three unexcused absences in succession or seven
14 unexcused absences in a period of fifty-two (52) weeks
15 from any court-ordered batterers' intervention program
16 shall be prima facie evidence of the violation of the
17 conditions of probation for the district attorney to
18 seek acceleration or revocation of any probation
19 entered by the court.

20 c. To investigate the effectiveness of additional
21 batterers' intervention models, the Attorney General,
22 beginning February 1, 2026, may certify two pilot
23 batterers' intervention programs for a period of
24 thirty-six (36) months located in Oklahoma and Tulsa

Counties. Proposals for certification as a pilot batterers' intervention program may be approved only if made by an organization that was dually certified as a batterers' intervention program and a domestic violence and sexual assault program on or before January 1, 2025, or by an organization certified as a batterers' intervention program on or before January 1, 2025, pursuant to a written agreement with an organization certified as a domestic violence and sexual assault program on or before January 1, 2025. Treatment provided through a pilot batterers' intervention program shall be evidence-based and shall be a minimum of twenty-six (26) weeks' duration. Participation in a pilot batterers' intervention program shall be limited to fifty participants at any given time. Pilot batterers' intervention programs shall be self-funded, including any fees which may be charged to the participants; provided, however, state or federal funding may continue for domestic violence and sexual abuse programs.

d. The Office of the Attorney General shall promulgate rules for pilot batterers' intervention programs in consultation with domestic violence and batterers' intervention programs or advocacy organizations.

1 The Attorney General shall establish within his or her
2 administrative rules a screening and referral process
3 to review referrals to the pilot batterers'
4 intervention programs; provided, however, individuals
5 convicted of domestic abuse with a dangerous weapon or
6 domestic abuse by strangulation shall not be eligible
7 to participate in the pilot program. The Attorney
8 General shall require reporting of data necessary for
9 evaluation of the pilot programs. The pilot programs
10 shall provide the Attorney General with annual updates
11 and at the end of a pilot program term, a formal
12 evaluation shall be done by a third party agreed upon
13 by the Attorney General and the pilot program
14 operator.

- 15 e. All participants in the pilot program shall be subject
16 to a validated risk assessment conducted by a
17 qualified professional. The results of the assessment
18 shall be used to determine program placement based on
19 the level of risk and individual circumstances.
20 Participation in any shared or joint setting by both
21 the survivor and the individual who has caused harm
22 shall be prohibited under a pilot program. The
23 Attorney General shall adopt rules to implement this

1 subparagraph, including standards for risk assessment
2 tools and differentiated response models.

3 f. The Attorney General may provide by rule for extension
4 of no more than twenty-four (24) months beyond thirty-
5 six (36) months of a pilot batterers' intervention
6 program if recommended by the third-party evaluator.

7 g. Pilot batterers' intervention programs shall:

8 (1) prioritize survivors' well-being in every part of
9 the pilot program including screening,
10 participation, reporting, and evaluation,

11 (2) ensure that batterers' intervention programs use
12 appropriate intervention strategies to assist the
13 batterer in fostering the appropriate skills to:

14 (a) stop the violence committed by the batterer,

15 (b) accept personal accountability for battering
16 and personal responsibility for the decision
17 to stop or not to stop battering, and

18 (c) change the existing attitudes and beliefs of
19 the batterer that support the coercive
20 behavior of the batterer,

21 (3) address all forms of battering,

22 (4) be culturally informed and provide culturally
23 appropriate services to all participants,

- 1 (5) provide services that are affordable and
2 accessible for participants, including
3 participants with disabilities and limited
4 English proficiency,
5 (6) provide a uniform standard for evaluating the
6 performance of a batterers' intervention program,
7 (7) be informed by evidence-based practice, research,
8 and proven field experience, including risk
9 assessment, that enhances victim safety,
10 (8) foster local and statewide communication and
11 interaction between and among batterers'
12 intervention programs and victim advocacy
13 programs, and
14 (9) ensure that batterers' intervention programs
15 operate as an integrated part of the wider
16 community response to battering.

17 ~~b.~~ h. A program for anger management, couples counseling,
18 or family and marital counseling shall not solely
19 qualify for the counseling or treatment requirement
20 for domestic abuse pursuant to this subsection. The
21 counseling may be ordered in addition to counseling
22 specifically for the treatment of domestic abuse or
23 per evaluation as set forth below. If, after
24 sufficient evaluation and attendance at required

1 ~~counseling~~ treatment sessions, the domestic violence
2 treatment program or licensed professional determines
3 that the defendant does not evaluate as a perpetrator
4 of domestic violence or does evaluate as a perpetrator
5 of domestic violence and should complete other
6 programs of treatment simultaneously or prior to or
7 subsequent to domestic violence treatment, including
8 but not limited to programs related to the mental
9 health, apparent substance or alcohol abuse or
10 inability or refusal to manage anger, the defendant
11 shall be ordered to complete the counseling as per the
12 recommendations of the domestic violence treatment
13 program or licensed professional;

- 14 3. a. The court shall set a review hearing no more than one
15 hundred twenty (120) days after the defendant is
16 ordered to participate in a domestic abuse counseling
17 program or undergo treatment for domestic abuse to
18 assure the attendance and compliance of the defendant
19 with the provisions of this subsection and the
20 domestic abuse counseling or treatment requirements.
21 The court may ~~suspend~~ delay sentencing of the
22 defendant until the defendant has presented proof to
23 the court of enrollment in a program of treatment for
24 domestic abuse by an individual licensed practitioner

1 or a domestic abuse treatment program certified by the
2 Attorney General and attendance at weekly sessions of
3 such program. Such proof shall be presented to the
4 court by the defendant no later than one hundred
5 twenty (120) days after the defendant is ordered to
6 such counseling or treatment. At such time, the court
7 may complete sentencing, beginning the period of the
8 sentence from the date that proof of enrollment is
9 presented to the court, and schedule reviews as
10 required by subparagraphs a and b of this paragraph
11 and paragraphs 4 and 5 of this subsection. Three
12 unexcused absences in succession or seven unexcused
13 absences in a period of fifty-two (52) weeks from any
14 court-ordered domestic abuse counseling or treatment
15 program shall be prima facie evidence of the violation
16 of the conditions of probation for the district
17 attorney to seek acceleration or revocation of any
18 probation entered by the court.

19 b. The court shall set a second review hearing after the
20 completion of the counseling or treatment to assure
21 the attendance and compliance of the defendant with
22 the provisions of this subsection and the domestic
23 abuse counseling or treatment requirements. The court
24 shall retain continuing jurisdiction over the

1 defendant during the course of ordered counseling
2 through the final review hearing;

3 4. The court may set subsequent or other review hearings as the
4 court determines necessary to assure the defendant attends and fully
5 complies with the provisions of this subsection and the domestic
6 abuse counseling or treatment requirements;

7 5. At any review hearing, if the defendant is not
8 satisfactorily attending individual counseling or a domestic abuse
9 counseling or treatment program or is not in compliance with any
10 domestic abuse counseling or treatment requirements, the court may
11 order the defendant to further or continue counseling, treatment, or
12 other necessary services. The court may revoke all or any part of a
13 suspended sentence, deferred sentence, or probation pursuant to
14 Section 991b of Title 22 of the Oklahoma Statutes and subject the
15 defendant to any or all remaining portions of the original sentence;

16 6. At the first review hearing, the court shall require the
17 defendant to appear in court. Thereafter, for any subsequent review
18 hearings, the court may accept a report on the progress of the
19 defendant from individual counseling, domestic abuse counseling, or
20 the treatment program. There shall be no requirement for the victim
21 to attend review hearings; and

22 7. If funding is available, a referee may be appointed and
23 assigned by the presiding judge of the district court to hear
24 designated cases set for review under this subsection. Reasonable

1 compensation for the referees shall be fixed by the presiding judge.
2 The referee shall meet the requirements and perform all duties in
3 the same manner and procedure as set forth in Sections 1-8-103 and
4 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees
5 appointed in juvenile proceedings.

6 The defendant may be required to pay all or part of the cost of
7 the counseling or treatment, in the discretion of the court.

8 H. As used in subsection G of this section, "in the presence of
9 a child" means in the physical presence of a child; or having
10 knowledge that a child is present and may see or hear an act of
11 domestic violence. For the purposes of subsections C and G of this
12 section, "child" may be any child whether or not related to the
13 victim or the defendant.

14 I. For the purposes of subsections C and G of this section, any
15 conviction for assault and battery against an intimate partner or a
16 family or household member as defined by Section 60.1 of Title 22 of
17 the Oklahoma Statutes shall constitute a sufficient basis for a
18 felony charge:

19 1. If that conviction is rendered in any state, county or
20 parish court of record of this or any other state; or

21 2. If that conviction is rendered in any municipal court of
22 record of this or any other state for which any jail time was
23 served; provided, no conviction in a municipal court of record
24

1 entered prior to November 1, 1997, shall constitute a prior
2 conviction for purposes of a felony charge.

3 J. Any person who commits any assault and battery by
4 strangulation or attempted strangulation against an intimate partner
5 or a family or household member as defined by Section 60.1 of Title
6 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a
7 Class B5 felony offense of domestic abuse by strangulation and shall
8 be punished by imprisonment in the custody of the Department of
9 Corrections for a period not less than one (1) year nor more than
10 ten (10) years, or by a fine not more than Twenty Thousand Dollars
11 (\$20,000.00), or by both such fine and imprisonment. The provisions
12 of Section 51.1 of this title shall apply to any second or
13 subsequent conviction of a violation of this subsection. As used in
14 this subsection, "strangulation" means any form of asphyxia;
15 including, but not limited to, asphyxia characterized by closure of
16 the blood vessels or air passages of the neck as a result of
17 external pressure on the neck or the closure of the nostrils or
18 mouth as a result of external pressure on the head.

19 K. Any district court of this state and any judge thereof shall
20 be immune from any liability or prosecution for issuing an order
21 that requires a defendant to:

22 1. Attend a treatment program for domestic abusers certified by
23 the Attorney General;

24

1 2. Attend counseling or treatment services ordered as part of
2 any suspended or deferred sentence or probation; and

3 3. Attend, complete, and be evaluated before and after
4 attendance by a treatment program for domestic abusers, certified by
5 the Attorney General.

6 L. There shall be no charge of fees or costs to any victim of
7 domestic violence, stalking, or sexual assault in connection with
8 the prosecution of a domestic violence, stalking, or sexual assault
9 offense in this state.

10 M. In the course of prosecuting any charge of domestic abuse,
11 stalking, harassment, rape, or violation of a protective order, the
12 prosecutor shall provide the court, prior to sentencing or any plea
13 agreement, a local history and any other available history of past
14 convictions of the defendant within the last ten (10) years relating
15 to domestic abuse, stalking, harassment, rape, violation of a
16 protective order, or any other violent misdemeanor or felony
17 convictions.

18 N. Any plea of guilty or finding of guilt for a violation of
19 subsection C, F, G, I or J of this section shall constitute a
20 conviction of the offense for the purpose of this act or any other
21 criminal statute under which the existence of a prior conviction is
22 relevant for a period of ten (10) years following the completion of
23 any court imposed probationary term; provided, the person has not,
24

1 in the meantime, been convicted of a misdemeanor involving moral
2 turpitude or a felony.

3 O. For purposes of subsection F of this section, "great bodily
4 injury" means bone fracture, protracted and obvious disfigurement,
5 protracted loss or impairment of the function of a body part, organ
6 or mental faculty, or substantial risk of death.

7 P. Any pleas of guilty or nolo contendere or finding of guilt
8 to a violation of any provision of this section shall constitute a
9 conviction of the offense for the purpose of any subsection of this
10 section under which the existence of a prior conviction is relevant
11 for a period of ten (10) years following the completion of any
12 sentence or court imposed probationary term.

13 SECTION 13. REPEALER 21 O.S. 2021, Section 644, as last
14 amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025,
15 Section 644), is hereby repealed.

16 SECTION 14. REPEALER 21 O.S. 2021, Section 644, as last
17 amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025,
18 Section 644), is hereby repealed.

19 SECTION 15. REPEALER 21 O.S. 2021, Section 644, as last
20 amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025,
21 Section 644), is hereby repealed.

22 SECTION 16. AMENDATORY 21 O.S. 2021, Section 650, as
23 amended by Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
24 Section 650), is amended to read as follows:

1 Section 650. A. Every person who, without justifiable or
2 excusable cause, knowingly commits any aggravated assault and
3 battery upon the person of a police officer, sheriff, deputy sheriff
4 or highway patrolman, corrections personnel as defined in Section
5 649 of this title, or any state peace officer employed by any state
6 or federal governmental agency to enforce state laws, while the
7 officer is in the performance of his or her duties shall, upon
8 conviction ~~thereof~~, be guilty of a Class A3 felony offense, ~~which~~
9 ~~shall be~~ punishable by imprisonment in the custody of the Department
10 of Corrections for not more than life ~~or by~~, a fine not exceeding
11 One Thousand Dollars (\$1,000.00), or by both such fine and
12 imprisonment.

13 B. Every person who, without justifiable or excusable cause,
14 commits any aggravated assault and battery upon a person that the
15 violator knows or should reasonably know is a police officer,
16 sheriff, deputy sheriff ~~or~~, highway patrolman, corrections personnel
17 as defined in Section 649 of this title, or any state peace officer
18 employed by any state or federal governmental agency to enforce
19 state laws, that results in maiming as defined in Section 751 of
20 this title, while the officer is in the performance of his or her
21 duties shall, upon conviction, be guilty of a Class A2 felony
22 offense punishable by imprisonment in the custody of the Department
23 of Corrections ~~of~~ for not less than five (5) years nor more than
24

1 life, or by a fine not exceeding Five Thousand Dollars (\$5,000.00),
2 or by both such fine and imprisonment.

3 C. For purposes of this section, aggravated assault and battery
4 upon law officers includes ~~the~~:

5 1. The physical contact with and ~~in~~ an attempt to gain control
6 of the firearm; or

7 2. The strangulation,
8 of any police officer, sheriff, deputy sheriff, highway patrolman,
9 corrections personnel as defined in Section 649 of this title, or
10 any peace officer employed by any state or federal governmental
11 agency to enforce state laws. As used in this subsection,
12 "strangulation" shall have the same meaning as provided in
13 subsection J of Section 644 of this title.

14 D. This section shall not supersede any other act or acts, but
15 shall be cumulative thereto.

16 SECTION 17. REPEALER 21 O.S. 2021, Section 650, as
17 amended by Section 1, Chapter 32, O.S.L. 2025 (21 O.S. Supp. 2025,
18 Section 650), is hereby repealed.

19 SECTION 18. AMENDATORY 21 O.S. 2021, Section 748, as
20 last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
21 2025, Section 748), is amended to read as follows:

22 Section 748. A. As used in Sections 748 and 748.2 of this
23 title:
24

1 1. "Coercion" means compelling, forcing or intimidating a
2 person to act by:

3 a. threats of harm or physical restraint against any
4 person,

5 b. any act, scheme, plan, or pattern intended to cause a
6 person to believe that performing, or failing to
7 perform, an act would result in serious physical,
8 financial, or emotional harm or distress to or
9 physical restraint against any person,

10 c. the abuse or threatened abuse of the law or legal
11 process,

12 d. knowingly destroying, concealing, removing,
13 confiscating or possessing any actual or purported
14 passport, labor or immigration document, or other
15 government identification document, including but not
16 limited to a driver license or birth certificate, of
17 another person,

18 e. facilitating or controlling a person's access to any
19 addictive or controlled substance other than for legal
20 medical purposes,

21 f. blackmail,

22 g. demanding or claiming money, goods, or any other thing
23 of value from or on behalf of a prostituted person
24

1 where such demand or claim arises from or is directly
2 related to the act of prostitution,

3 h. determining, dictating or setting the times at which
4 another person will be available to engage in an act
5 of prostitution with a third party,

6 i. determining, dictating or setting the places at which
7 another person will be available for solicitation of,
8 or to engage in, an act of prostitution with a third
9 party, or

10 j. determining, dictating or setting the places at which
11 another person will reside for purposes of making such
12 person available to engage in an act of prostitution
13 with a third party;

14 2. "Commercial sex" means any form of commercial sexual
15 activity such as sexually explicit performances, prostitution,
16 participation in the production of pornography, performance in a
17 strip club, or exotic dancing or display;

18 3. "Debt bondage" means the status or condition of a debtor
19 arising from a pledge by the debtor of his or her personal services
20 or of those of a person under his or her control as a security for
21 debt if the value of those services as reasonably assessed is not
22 applied toward the liquidation of the debt or the length and nature
23 of those services are not respectively limited and defined;

1 4. "Human trafficking" means modern-day slavery that includes,
2 but is not limited to, extreme exploitation and the denial of
3 freedom or liberty of an individual for purposes of deriving benefit
4 from that individual's commercial sex act or labor;

5 5. "Human trafficking for labor" means:

6 a. recruiting, enticing, harboring, maintaining,
7 transporting, providing or obtaining, by any means,
8 another person through deception, force, fraud, threat
9 or coercion or for purposes of engaging the person in
10 labor, or

11 b. benefiting, financially or by receiving anything of
12 value, from participation in a venture that has
13 engaged in an act of trafficking for labor;

14 6. "Human trafficking for commercial sex" means:

15 a. recruiting, enticing, harboring, maintaining,
16 transporting, providing or obtaining, by any means,
17 another person through deception, force, fraud, threat
18 or coercion for purposes of engaging the person in a
19 commercial sex act,

20 b. recruiting, enticing, harboring, maintaining,
21 transporting, providing, purchasing or obtaining, by
22 any means, a minor for purposes of engaging the minor
23 in a commercial sex act, or
24

1 c. benefiting, financially or by receiving anything of
2 value, from participating in a venture that has
3 engaged in an act of trafficking for commercial sex;

4 7. "Legal process" means the criminal law, the civil law, or
5 the regulatory system of the federal government, any state,
6 territory, district, commonwealth, or trust territory therein, and
7 any foreign government or subdivision thereof and includes legal
8 civil actions, criminal actions, and regulatory petitions or
9 applications;

10 8. "Minor" means an individual under eighteen (18) years of
11 age; and

12 9. "Victim" means a person against whom a violation of any
13 provision of this section has been committed.

14 B. It shall be unlawful to knowingly engage in human
15 trafficking.

16 C. 1. Any person violating the provisions of this section
17 shall, upon conviction, be guilty of a Class A2 felony offense
18 punishable by imprisonment in the custody of the Department of
19 Corrections for a term of not less than five (5) years or for life,
20 or by a fine of not more than One Hundred Thousand Dollars
21 (\$100,000.00), or by both such fine and imprisonment.

22 2. Any person violating the provisions of this section where
23 the victim of the offense is under eighteen (18) years of age at the
24 time of the offense shall, upon conviction, be guilty of a Class A2

1 felony offense punishable by imprisonment in the custody of the
2 Department of Corrections for a term of not less than ~~fifteen (15)~~
3 ten (10) years or, for life, or for life without parole, or by a
4 fine of not more than Two Hundred Fifty Thousand Dollars
5 (\$250,000.00), or by both such fine and imprisonment.

6 3. The court shall also order the defendant to pay restitution
7 to the victim as provided in Section 991f of Title 22 of the
8 Oklahoma Statutes. In addition, the court shall require the
9 defendant to pay for a psychological evaluation to determine the
10 extent of counseling necessary for the human trafficking victim and
11 any necessary psychological counseling deemed necessary to
12 rehabilitate the victim. Such evaluations and counseling may be
13 performed by psychiatrists, psychologists, licensed professional
14 counselors, or social workers.

15 4. If the person is convicted of human trafficking, the person
16 shall serve eighty-five percent (85%) of the sentence before being
17 eligible for parole consideration or any earned credits. The terms
18 of imprisonment specified in this subsection shall not be subject to
19 statutory provisions for suspension, deferral or probation, or state
20 correctional institution earned credits accruing from and after
21 November 1, 1989, except for the achievement earned credits
22 authorized by subsection H of Section 138 of Title 57 of the
23 Oklahoma Statutes. To qualify for such achievement earned credits,
24 such inmates must also be in compliance with the standards for Class

1 level 2 behavior, as defined in subsection D of Section 138 of Title
2 57 of the Oklahoma Statutes.

3 D. It is an affirmative defense to prosecution for a criminal,
4 youthful offender, or delinquent offense that, during the time of
5 the alleged commission of the offense, the defendant or alleged
6 youthful offender or delinquent was a victim of human trafficking.

7 E. The consent of a victim to the activity prohibited by this
8 section shall not constitute a defense.

9 F. Lack of knowledge of the age of the victim shall not
10 constitute a defense to the activity prohibited by this section with
11 respect to human trafficking of a minor.

12 SECTION 19. REPEALER 21 O.S. 2021, Section 748, as last
13 amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025,
14 Section 748), is hereby repealed.

15 SECTION 20. AMENDATORY 21 O.S. 2021, Section 843.5, as
16 last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
17 2025, Section 843.5), is amended to read as follows:

18 Section 843.5. A. Any person who shall willfully or
19 maliciously engage in child abuse, as defined in this section,
20 shall, upon conviction, be guilty of a Class A3 felony offense
21 punishable by imprisonment in the custody of the Department of
22 Corrections not exceeding life imprisonment, or by imprisonment in a
23 county jail not exceeding one (1) year, or by a fine of not less
24

1 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
2 Dollars (\$5,000.00), or both such fine and imprisonment.

3 B. Any person responsible for the health, safety or welfare of
4 a child who shall willfully or maliciously engage in enabling child
5 abuse, as defined in this section, shall, upon conviction, be guilty
6 of a Class A3 felony offense and shall be punished by imprisonment
7 in the custody of the Department of Corrections not exceeding life
8 imprisonment, or by imprisonment in a county jail not exceeding one
9 (1) year, or by a fine of not less than Five Hundred Dollars
10 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
11 such fine and imprisonment.

12 C. Any person responsible for the health, safety or welfare of
13 a child who shall willfully or maliciously engage in child neglect,
14 as defined in this section, shall, upon conviction, be guilty of a
15 Class B1 felony offense and shall be punished by imprisonment in the
16 custody of the Department of Corrections not exceeding life
17 imprisonment, or by imprisonment in a county jail not exceeding one
18 (1) year, or by a fine of not less than Five Hundred Dollars
19 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
20 such fine and imprisonment.

21 D. Any parent or other person who shall willfully or
22 maliciously engage in enabling child neglect shall, upon conviction,
23 be guilty of a Class B1 felony offense and shall be punished by
24 imprisonment in the custody of the Department of Corrections not

1 exceeding life imprisonment, or by imprisonment in a county jail not
2 exceeding one (1) year, or by a fine of not less than Five Hundred
3 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),
4 or both such fine and imprisonment.

5 E. Any person responsible for the health, safety or welfare of
6 a child who shall willfully or maliciously engage in child sexual
7 abuse, as defined in this section, shall, upon conviction, be guilty
8 of a Class A3 felony offense and shall be punished by imprisonment
9 in the custody of the Department of Corrections not exceeding life
10 imprisonment, or by imprisonment in a county jail not exceeding one
11 (1) year, or by a fine of not less than Five Hundred Dollars
12 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both
13 such fine and imprisonment, except as provided in Section 51.1a of
14 this title or as otherwise provided in subsection F of this section
15 for a child victim under twelve (12) years of age. Except for
16 persons sentenced to life or life without parole, any person
17 sentenced to imprisonment for two (2) years or more for a violation
18 of this subsection shall be required to serve a term of post-
19 imprisonment supervision pursuant to subparagraph f of paragraph 1
20 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
21 under conditions determined by the Department of Corrections. The
22 jury shall be advised that the mandatory post-imprisonment
23 supervision shall be in addition to the actual imprisonment.

1 F. Any person responsible for the health, safety or welfare of
2 a child who shall willfully or maliciously engage in child sexual
3 abuse, as defined in this section, to a child under twelve (12)
4 years of age shall, upon conviction, be guilty of a Class A1 felony
5 offense and shall be punished by imprisonment in the custody of the
6 Department of Corrections for not less than twenty-five (25) years
7 nor more than life imprisonment, and by a fine of not less than Five
8 Hundred Dollars (\$500.00) nor more than Five Thousand Dollars
9 (\$5,000.00).

10 G. Any parent or other person who shall willfully or
11 maliciously engage in enabling child sexual abuse shall, upon
12 conviction, be guilty of a Class A3 felony offense and shall be
13 punished by imprisonment in the custody of the Department of
14 Corrections not exceeding life imprisonment, or by imprisonment in a
15 county jail not exceeding one (1) year, or by a fine of not less
16 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
17 Dollars (\$5,000.00), or both such fine and imprisonment.

18 H. Any person who shall willfully or maliciously engage in
19 child sexual exploitation, as defined in this section, shall, upon
20 conviction, be guilty of a Class A3 felony offense and shall be
21 punished by imprisonment in the custody of the Department of
22 Corrections not exceeding life imprisonment, or by imprisonment in a
23 county jail not exceeding one (1) year, or by a fine of not less
24 than Five Hundred Dollars (\$500.00) nor more than Five Thousand

1 Dollars (\$5,000.00), or both such fine and imprisonment, except as
2 provided in subsection I of this section for a child victim under
3 twelve (12) years of age. Except for persons sentenced to life or
4 life without parole, any person sentenced to imprisonment for two
5 (2) years or more for a violation of this subsection shall be
6 required to serve a term of post-imprisonment supervision pursuant
7 to subparagraph f of paragraph 1 of subsection A of Section 991a of
8 Title 22 of the Oklahoma Statutes under conditions determined by the
9 Department of Corrections. The jury shall be advised that the
10 mandatory post-imprisonment supervision shall be in addition to the
11 actual imprisonment.

12 I. Any person who shall willfully or maliciously engage in
13 child sexual exploitation, as defined in this section, of a child
14 under twelve (12) years of age shall, upon conviction, be guilty of
15 a Class A1 felony offense and shall be punished by imprisonment in
16 the custody of the Department of Corrections for not less than
17 twenty-five (25) years nor more than life imprisonment, and by a
18 fine of not less than Five Hundred Dollars (\$500.00) nor more than
19 Five Thousand Dollars (\$5,000.00).

20 J. Any person responsible for the health, safety or welfare of
21 a child who shall willfully or maliciously engage in enabling child
22 sexual exploitation, as defined in this section, shall, upon
23 conviction, be guilty of a Class A3 felony offense and shall be
24 punished by imprisonment in the custody of the Department of

1 Corrections not exceeding life imprisonment, or by imprisonment in a
2 county jail not exceeding one (1) year, or by a fine of not less
3 than Five Hundred Dollars (\$500.00) nor more than Five Thousand
4 Dollars (\$5,000.00), or both such fine and imprisonment.

5 K. ~~Notwithstanding~~ In addition to any other ~~provision of~~
6 punishment prescribed by law, any person convicted of forcible anal
7 or oral sodomy, rape, or rape by instrumentation, ~~or lewd~~
8 ~~molestation~~ of a child under fourteen (14) years of age ~~subsequent~~
9 ~~to a previous conviction for any offense of forcible anal or oral~~
10 ~~sodomy, rape, rape by instrumentation, or lewd molestation of a~~
11 ~~child under fourteen (14) years of age~~ shall be guilty of a Class A1
12 felony offense and shall be ~~punished~~ eligible for punishment by
13 death or by imprisonment for life without parole.

14 L. Provided, however, that nothing contained in this section
15 shall prohibit any parent or guardian from using reasonable and
16 ordinary force pursuant to Section 844 of this title.

17 M. Consent shall not be a defense for any violation provided
18 for in this section.

19 N. Notwithstanding the age requirements of other statutes
20 referenced within this section, this section shall apply to any
21 child under eighteen (18) years of age.

22 O. As used in this section:

23 1. "Child abuse" means:
24

- 1 a. the willful or malicious harm or threatened harm or
2 failure to protect from harm or threatened harm to the
3 health, safety or welfare of a child under eighteen
4 (18) years of age by a person responsible for a
5 child's health, safety or welfare, or
6 b. the act of willfully or maliciously injuring,
7 torturing or maiming a child under eighteen (18) years
8 of age by any person;

9 2. "Child neglect" means the willful or malicious neglect, as
10 defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of
11 a child under eighteen (18) years of age by a person responsible for
12 a child's health, safety or welfare;

13 3. "Child sexual abuse" means the willful or malicious sexual
14 abuse of a child under eighteen (18) years of age by a person
15 responsible for a child's health, safety or welfare and includes,
16 but is not limited to:

- 17 a. sexual intercourse,
18 b. penetration of the vagina or anus, however slight, by
19 an inanimate object or any part of the human body not
20 amounting to sexual intercourse,
21 c. sodomy,
22 d. incest, or
23 e. a lewd act or proposal, as defined in this section;

1 4. "Child sexual exploitation" means the willful or malicious
2 sexual exploitation of a child under eighteen (18) years of age by
3 another and includes, but is not limited to:

- 4 a. human trafficking, as provided for in Section 748 of
5 this title, if the offense involved child trafficking
6 for commercial sex,
- 7 b. trafficking in children, as provided for in Section
8 866 of this title, if the offense was committed for
9 the sexual gratification of any person,
- 10 c. procuring or causing the participation of a minor in
11 child ~~pornography~~ sexual abuse material, as provided
12 for in Section 1021.2 of this title,
- 13 d. purchase, procurement or possession of child
14 ~~pornography~~ sexual abuse material, as provided for in
15 Section 1024.2 of this title,
- 16 e. engaging in or soliciting prostitution, as provided
17 for in Section 1029 of this title, if the offense
18 involved child sex trafficking,
- 19 f. publication, distribution or participation in the
20 preparation of obscene material, as provided for in
21 Section 1040.8 of this title, if the offense involved
22 child ~~pornography~~ sexual abuse material,

- 1 g. aggravated possession of child ~~pornography~~ sexual
2 abuse material, as provided for in Section 1040.12a of
3 this title,
- 4 h. sale or distribution of obscene material, as provided
5 for in Section 1040.13 of this title,
- 6 i. soliciting sexual conduct or communication with a
7 minor by use of technology, as provided for in Section
8 1040.13a of this title,
- 9 j. offering or transporting a child for purposes of child
10 sex trafficking, as provided for in Section 1087 of
11 this title, and
- 12 k. child sex trafficking, as provided for in Section 1088
13 of this title;

14 5. "Enabling child abuse" means the causing, procuring or
15 permitting of child abuse by a person responsible for a child's
16 health, safety or welfare;

17 6. "Enabling child neglect" means the causing, procuring or
18 permitting of child neglect by a person responsible for a child's
19 health, safety or welfare;

20 7. "Enabling child sexual abuse" means the causing, procuring
21 or permitting of child sexual abuse by a person responsible for a
22 child's health, safety or welfare;

23

24

1 8. "Enabling child sexual exploitation" means the causing,
2 procuring or permitting of child sexual exploitation by a person
3 responsible for a child's health, safety or welfare;

4 9. "Incest" means marrying, committing adultery or fornicating
5 with a child by a person responsible for the health, safety or
6 welfare of a child;

7 10. "Lewd act or proposal" means:

- 8 a. making any oral, written or electronic or computer-
9 generated lewd or indecent proposal to a child for the
10 child to have unlawful sexual relations or sexual
11 intercourse with any person,
 - 12 b. looking upon, touching, mauling or feeling the body or
13 private parts of a child in a lewd or lascivious
14 manner or for the purpose of sexual gratification,
 - 15 c. asking, inviting, enticing or persuading any child to
16 go alone with any person to a secluded, remote or
17 secret place for a lewd or lascivious purpose,
 - 18 d. urinating or defecating upon a child or causing,
19 forcing or requiring a child to defecate or urinate
20 upon the body or private parts of another person for
21 the purpose of sexual gratification,
 - 22 e. ejaculating upon or in the presence of a child,
- 23
24

- 1 f. causing, exposing, forcing or requiring a child to
2 look upon the body or private parts of another person
3 for the purpose of sexual gratification,
4 g. causing, forcing or requiring any child to view any
5 obscene materials, child ~~pornography~~ sexual abuse
6 material or materials deemed harmful to minors as such
7 terms are defined in Sections 1024.1 and 1040.75 of
8 this title,
9 h. causing, exposing, forcing or requiring a child to
10 look upon sexual acts performed in the presence of the
11 child for the purpose of sexual gratification, or
12 i. causing, forcing or requiring a child to touch or feel
13 the body or private parts of the child or another
14 person for the purpose of sexual gratification;

15 11. "Permit" means to authorize or allow for the care of a
16 child by an individual when the person authorizing or allowing such
17 care knows or reasonably should know that the child will be placed
18 at risk of the conduct or harm proscribed by this section;

19 12. "Person responsible for a child's health, safety or
20 welfare" for purposes of this section shall include, but not be
21 limited to:

- 22 a. the parent of the child,
23 b. the legal guardian of the child,
24 c. the custodian of the child,

- d. the foster parent of the child,
- e. a person eighteen (18) years of age or older with whom the parent of the child cohabitates, who is at least three (3) years older than the child,
- f. any other person eighteen (18) years of age or older residing in the home of the child, who is at least three (3) years older than the child,
- g. an owner, operator, agent, employee or volunteer of a public or private residential home, institution, facility or day treatment program, as defined in Section 175.20 of Title 10 of the Oklahoma Statutes, that the child attended,
- h. an owner, operator, agent, employee or volunteer of a child care facility, as defined in Section 402 of Title 10 of the Oklahoma Statutes, that the child attended,
- i. an intimate partner of the parent of the child, as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, or
- j. a person who has voluntarily accepted responsibility for the care or supervision of a child;

13. "Sexual intercourse" means the actual penetration, however slight, of the vagina or anus by the penis; and

14. "Sodomy" means:

- a. penetration, however slight, of the mouth of the child by a penis,
- b. penetration, however slight, of the vagina of a person responsible for a child's health, safety or welfare, by the mouth of a child,
- c. penetration, however slight, of the mouth of the person responsible for a child's health, safety or welfare by the penis of the child, or
- d. penetration, however slight, of the vagina of the child by the mouth of the person responsible for a child's health, safety or welfare.

SECTION 21. REPEALER 21 O.S. 2021, Section 843.5, as amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 22. REPEALER 21 O.S. 2021, Section 843.5, as last amended by Section 1, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 23. AMENDATORY 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1), is amended to read as follows:

Section 852.1. A. A person who is the parent, guardian, or person having custody or control over a child as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, commits child endangerment when the person:

1 1. Knowingly permits physical or sexual abuse of a child;

2 2. Knowingly permits a child to be present at a location where
3 a controlled dangerous substance is being manufactured or attempted
4 to be manufactured as defined in Section 2-101 of Title 63 of the
5 Oklahoma Statutes;

6 3. Knowingly permits a child to be present in a vehicle when
7 the person knows or should have known that the operator of the
8 vehicle is impaired by or is under the influence of alcohol or
9 another intoxicating substance; or

10 4. Is the driver, operator, or person in physical control of a
11 vehicle in violation of Section 11-902 of Title 47 of the Oklahoma
12 Statutes or impaired while transporting or having in the vehicle
13 such child or children.

14 However, it is an affirmative defense to this paragraph if the
15 person had a reasonable apprehension that any action to stop the
16 physical or sexual abuse or deny permission for the child to be in
17 the vehicle with an intoxicated person would result in substantial
18 bodily harm to the person or the child.

19 Nothing in this subsection shall prohibit the prosecution of a
20 person pursuant to the provisions of Section 11-902 or 11-904 of
21 Title 47 of the Oklahoma Statutes.

22 B. The provisions of this section shall not apply to any
23 parent, guardian or other person having custody or control of a
24 child for the sole reason that the parent, guardian or other person

1 in good faith selects and depends upon spiritual means or prayer for
2 the treatment or cure of disease or remedial care for such child.
3 This subsection shall in no way limit or modify the protections
4 afforded said child in Section 852 of this title or Section 1-4-904
5 of Title 10A of the Oklahoma Statutes.

6 C. Any person convicted of violating any provision of this
7 section shall be guilty of a Class B6 felony offense punishable by
8 imprisonment in the custody of the Department of Corrections for a
9 term of not more than four (4) years, or by a fine not exceeding
10 Five Thousand Dollars (\$5,000.00), or by both such fine and
11 imprisonment.

12 SECTION 24. REPEALER 21 O.S. 2021, Section 852.1, as
13 amended by Section 1, Chapter 113, O.S.L. 2025 (21 O.S. Supp. 2025,
14 Section 852.1), is hereby repealed.

15 SECTION 25. AMENDATORY 21 O.S. 2021, Section 856.3, as
16 amended by Section 159, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
17 2025, Section 856.3), is amended to read as follows:

18 Section 856.3. Any person who attempts or commits a gang-
19 related offense as a condition of membership in a criminal street
20 gang or while in association with any criminal street gang or gang
21 member shall be guilty of a Class B5 felony offense. ~~Upon~~
22 punishable upon conviction, ~~the violator shall be punished by~~
23 ~~incarceration~~ imprisonment in the custody of the Department of
24 Corrections for a term of five (5) years, which shall be in addition

1 to any other penalty imposed. For purposes of this section,
2 "criminal street gang" is defined by subsection F of Section 856 of
3 ~~Title 21 of the Oklahoma Statutes~~ this title and "gang-related
4 offense" means those offenses enumerated in ~~paragraphs 1 through 16~~
5 ~~of subsection F of Section 856 of Title 21 of the Oklahoma Statutes~~
6 this title.

7 SECTION 26. REPEALER 21 O.S. 2021, Section 856.3, as
8 amended by Section 1, Chapter 108, O.S.L. 2025 (21 O.S. Supp. 2025,
9 Section 856.3), is hereby repealed.

10 SECTION 27. REPEALER 21 O.S. 2021, Section 888, as
11 amended by Section 4, Chapter 455, O.S.L. 2002, is hereby repealed.

12 SECTION 28. AMENDATORY 21 O.S. 2021, Section 1021.2, as
13 last amended by Section 49, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
14 2025, Section 1021.2), is amended to read as follows:

15 Section 1021.2. A. Any person who shall procure or cause the
16 participation of any minor under the age of eighteen (18) years in
17 any child ~~pornography~~ sexual abuse material or obscene material or
18 who knowingly possesses, views, accesses, shares, streams,
19 downloads, procures, sells, distributes, or manufactures, or causes
20 to be possessed, viewed, accessed, shared, streamed, downloaded,
21 procured, sold, distributed, or manufactured any child ~~pornography~~
22 sexual abuse material shall, upon conviction, be guilty of a Class
23 B1 felony offense and shall be punished by imprisonment in the
24 custody of the Department of Corrections for not more than twenty

1 (20) years and by the imposition of a fine of not more than Twenty-
2 five Thousand Dollars (\$25,000.00). Persons convicted under this
3 section shall not be eligible for a deferred sentence. Except for
4 persons sentenced to life or life without parole, any person
5 sentenced to imprisonment for two (2) years or more for a violation
6 of this subsection shall be required to serve a term of post-
7 imprisonment supervision pursuant to subparagraph f of paragraph 1
8 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
9 under conditions determined by the Department of Corrections. The
10 jury shall be advised that the mandatory post-imprisonment
11 supervision shall be in addition to the actual imprisonment.

12 B. The consent of the minor, or of the mother, father, legal
13 guardian, or custodian of the minor to the activity prohibited by
14 this section shall not constitute a defense.

15 SECTION 29. REPEALER 21 O.S. 2021, Section 1021.2, as
16 amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
17 Section 1021.2), is hereby repealed.

18 SECTION 30. AMENDATORY 21 O.S. 2021, Section 1024.1, as
19 last amended by Section 4, Chapter 29, O.S.L. 2025 (21 O.S. Supp.
20 2025, Section 1024.1), is amended to read as follows:

21 Section 1024.1. A. As used in Sections 1021, 1021.1 through
22 1021.4, Sections 1022, 1023, and Sections 1040.8 through 1040.24 of
23 this title, "child sexual abuse material" means:
24

1 1. Any visual depiction of a child engaged in any act of
2 sexually explicit conduct;

3 2. Any visual depiction of a child that has been adapted,
4 altered, or modified so that the child depicted appears to be
5 engaged in any act of sexually explicit conduct; or

6 3. Any visual depiction that appears to be a child, regardless
7 of whether the image is a depiction of an actual child, a computer-
8 generated image, or an image altered to appear to be a child,
9 engaged in any act of sexually explicit conduct, and such visual
10 depiction is obscene.

11 B. Each visual depiction or individual image of child
12 ~~pornography~~ sexual abuse material shall constitute a separate item
13 and act.

14 C. As used in Sections 1021 through 1024.4 and Sections 1040.8
15 through 1040.24 of this title:

16 1. "Child" means a person under eighteen (18) years of age;

17 2. "Obscene" means any performance or depiction, in any form or
18 on any medium, if the material when taken as a whole:

19 a. appeals to the prurient interest in sex as determined
20 by the average person applying the contemporary
21 standards of their community,

22 b. depicts, represents, or displays sexually explicit
23 conduct in a patently offensive way, and
24

1 c. a reasonable person would find the material or
2 performance lacks serious literary, artistic,
3 educational, political, or scientific value;

4 3. "Performance" means any display, live, recorded, or
5 transmitted, in any form or medium;

6 4. "Sexually explicit conduct" means any of the following
7 whether actual or simulated:

8 a. acts of sexual intercourse,

9 b. acts of oral and anal sodomy,

10 c. acts of masturbation,

11 d. acts of sexual activity with an animal,

12 e. acts of sadomasochism including:

13 (1) flagellation or torture by or upon any person who
14 is nude or clad in undergarments or in a costume
15 which is of a revealing nature, or

16 (2) the condition of being fettered, bound, or
17 otherwise physically restrained on the part of
18 one who is nude or so clothed,

19 f. acts of excretion in a sexual context, or

20 g. exhibiting genitalia, breast, or pubic area for the
21 purpose of the sexual stimulation of the viewer;

22 5. "Explicit child sexual abuse material" means material which
23 a law enforcement officer can immediately identify as child sexual
24 abuse material; and

1 6. "Visual depiction" means any depiction, picture, movie,
2 performance, or image displayed, stored, shared, or transmitted in
3 any format and on any medium including data that is capable of being
4 converted into a depiction, picture, movie, performance, or image.

5 SECTION 31. REPEALER 21 O.S. 2021, Section 1024.1, as
6 amended by Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
7 Section 1024.1), is hereby repealed.

8 SECTION 32. AMENDATORY 21 O.S. 2021, Section 1031, as
9 last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
10 2025, Section 1031), is amended to read as follows:

11 Section 1031. A. Except as provided in subsection B, C, D, or
12 E of this section, any person violating any of the provisions of
13 paragraph 1, 2, 3, or 5 of subsection A of Section 1029 or Section
14 1030 of this title shall, upon conviction, be guilty of a
15 misdemeanor and shall be punished by imprisonment in the county jail
16 for not less than thirty (30) days nor more than one (1) year or by
17 fines as follows: a fine not more than Two Thousand Five Hundred
18 Dollars (\$2,500.00) upon the first conviction for violation of any
19 of such provisions, a fine not more than Five Thousand Dollars
20 (\$5,000.00) upon the second conviction for violation of any of such
21 provisions, and a fine not more than Seven Thousand Five Hundred
22 Dollars (\$7,500.00) upon the third or subsequent convictions for
23 violation of any of such provisions, or by both such imprisonment
24 and fine. In addition, the court may require a term of community

1 service not less than forty (40) nor more than eighty (80) hours.

2 The court in which any such conviction is had shall notify the
3 county superintendent of public health of such conviction.

4 B. Any person who engages in an act of prostitution with
5 knowledge that he or she is infected with the human immunodeficiency
6 virus shall, upon conviction, be guilty of a Class D1 felony offense
7 punishable by imprisonment as provided for in subsections B through
8 F of Section 20N of this title.

9 C. Any person who engages in an act of child ~~prostitution~~ sex
10 trafficking as defined in Section 1030 of this title shall, upon
11 conviction, be guilty of a Class B1 felony offense punishable by
12 imprisonment in the custody of the Department of Corrections for not
13 more than ten (10) years and by fines as follows: a fine not more
14 than Five Thousand Dollars (\$5,000.00) upon the first conviction, a
15 fine not more than Ten Thousand Dollars (\$10,000.00) upon the second
16 conviction, and a fine not more than Fifteen Thousand Dollars
17 (\$15,000.00) upon the third or subsequent convictions.

18 D. Any person violating any of the provisions of Section 1029
19 or 1030 of this title within one thousand (1,000) feet of a school
20 or church shall, upon conviction, be guilty of a Class D1 felony
21 offense and shall be punished by imprisonment as provided for in
22 subsections B through F of Section 20N of this title, or by fines as
23 follows: a fine not more than Two Thousand Five Hundred Dollars
24 (\$2,500.00) upon the first conviction for violation of any of such

1 provisions, a fine not more than Five Thousand Dollars (\$5,000.00)
2 upon the second conviction for violation of any of such provisions,
3 and a fine not more than Seven Thousand Five Hundred Dollars
4 (\$7,500.00) upon the third or subsequent convictions for violation
5 of any of such provisions, or by both such imprisonment and fine.
6 In addition, the court may require a term of community service not
7 less than forty (40) nor more than eighty (80) hours. The court in
8 which any such conviction is had shall notify the county
9 superintendent of public health of such conviction.

10 E. Any person violating paragraph 4 of subsection A of Section
11 1029 of this title shall, upon conviction, be guilty of a Class B4
12 felony offense and shall be punished in accordance with the
13 provisions of subsection B of Section 1040.57 of this title.

14 SECTION 33. REPEALER 21 O.S. 2021, Section 1031, as last
15 amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025,
16 Section 1031), is hereby repealed.

17 SECTION 34. AMENDATORY 21 O.S. 2021, Section 1040.12a,
18 as last amended by Section 26, Chapter 486, O.S.L. 2025 (21 O.S.
19 Supp. 2025, Section 1040.12a), is amended to read as follows:

20 Section 1040.12a. A. Any person who, with knowledge of its
21 contents, possesses one hundred (100) or more separate visual
22 depictions of child ~~pornography~~ sexual abuse material shall, upon
23 conviction, be guilty of aggravated possession of child ~~pornography~~
24 sexual abuse material, a Class A2 felony offense. The violator

1 shall be punished by imprisonment in the custody of the Department
2 of Corrections for a term not exceeding life imprisonment and by a
3 fine in an amount of not more than Ten Thousand Dollars
4 (\$10,000.00). The violator, upon conviction, shall be required to
5 register as a sex offender under the Sex Offenders Registration Act.

6 B. For purposes of this section:

7 1. Multiple copies of the same identical material shall each be
8 counted as a separate item; and

9 2. The terms "~~child pornography~~" sexual abuse material" and
10 "visual depictions" mean the same definitions provided by Section
11 1024.1 of this title.

12 SECTION 35. REPEALER 21 O.S. 2021, Section 1040.12a, as
13 amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
14 Section 1040.12a), is hereby repealed.

15 SECTION 36. REPEALER 21 O.S. 2021, Section 1040.12a, as
16 last amended by Section 3, Chapter 29, O.S.L. 2025 (21 O.S. Supp.
17 2025, Section 1040.12a), is hereby repealed.

18 SECTION 37. AMENDATORY 21 O.S. 2021, Section 1040.13b,
19 as last amended by Section 1, Chapter 23, O.S.L. 2025 (21 O.S. Supp.
20 2025, Section 1040.13b), is amended to read as follows:

21 Section 1040.13b. A. As used in this section:

22 1. "Artificial intelligence" means a machine-based system that
23 can, for a given set of human-defined objectives, make predictions,
24

1 recommendations, or decisions influencing real or virtual
2 environments, including the ability to:

- 3 a. perceive real and virtual environments,
- 4 b. abstract perceptions made under this paragraph into
5 models through analysis in an automated manner, and
- 6 c. use model inference to formulate options for
7 information or action based on outcomes under
8 subparagraphs a and b of this paragraph.

9 The term includes generative artificial intelligence;

10 2. "Artificially generated sexual depiction" means a visual
11 depiction:

- 12 a. that appears to authentically depict an individual in
13 a state of nudity or engaged in sexual conduct that
14 did not occur in reality, and
- 15 b. the production of which was substantially dependent
16 upon technical means, including artificial
17 intelligence or photo editing software, rather than
18 the ability of another person to physically
19 impersonate the other person;

20 3. "Generative artificial intelligence" means the class of
21 models that emulate the structure and characteristics of input data
22 in order to generate derived synthetic content, including
23 information such as images, videos, audio clips, or text, that has
24

1 been significantly modified or generated by algorithms, including by
2 artificial intelligence;

3 4. "Image" includes a photograph, film, videotape, digital
4 recording or other depiction or portrayal of an object, including a
5 human body;

6 5. "Intimate parts" means the fully unclothed, partially
7 unclothed or transparently clothed genitals, pubic area or female
8 adult nipple;

9 6. "Sexual act" means sexual intercourse including genital,
10 anal or oral sex; and

11 7. "Visual depiction" means any depiction, photograph, film,
12 performance, or image displayed, stored, shared, or transmitted in
13 any format and on any medium including data that is capable of being
14 converted into a depiction, picture, movie, performance, or image.

15 B. 1. A person commits nonconsensual dissemination of private
16 sexual images when he or she:

17 a. intentionally disseminates an image of another person
18 who is engaged in a sexual act or whose intimate parts
19 are exposed, in whole or in part,

20 b. obtains the image under circumstances in which a
21 reasonable person would know or understand that the
22 image was to remain private, and

23 c. disseminates the image without the effective consent
24 of the depicted person.

1 2. A person commits nonconsensual dissemination of private
2 sexual images when he or she:

- 3 a. disseminates an artificially generated sexual
4 depiction of another person with the intent or with
5 reckless disregard to harass, annoy, threaten, alarm,
6 or cause physical, emotional, reputational, or
7 economic harm to the depicted person, and
8 b. disseminates the artificially generated sexual
9 depiction without the effective consent of the
10 depicted person.

11 C. The provisions of this section shall not apply to the
12 intentional dissemination of an image or artificially generated
13 sexual depiction of another identifiable person who is engaged in a
14 sexual act or whose intimate parts are exposed when:

15 1. The dissemination is made for the purpose of a criminal
16 investigation that is otherwise lawful;

17 2. The dissemination is for the purpose of, or in connection
18 with, the reporting of unlawful conduct;

19 3. The images or artificially generated sexual depictions
20 involve voluntary exposure in public or commercial settings; or

21 4. The dissemination serves a lawful purpose.

22 D. Nothing in this section shall be construed to impose
23 liability upon the following entities solely as a result of content
24 or information provided by another person:

1 1. An interactive computer service, as defined in 47 U.S.C.,
2 Section 230(f)(2);

3 2. A wireless service provider, as defined in Section 332(d) of
4 the Telecommunications Act of 1996, 47 U.S.C., Section 151 et seq.,
5 Federal Communications Commission rules, and the Omnibus Budget
6 Reconciliation Act of 1993, Pub. L. No. 103-66; or

7 3. A telecommunications network or broadband provider.

8 E. A person convicted under this section is subject to the
9 forfeiture provisions in Section 1040.54 of this title.

10 F. Any person who violates the provisions of subsection B of
11 this section shall, upon conviction, be guilty of a misdemeanor
12 punishable by imprisonment in a county jail for not more than one
13 (1) year or by a fine of not more than One Thousand Dollars
14 (\$1,000.00), or both such fine and imprisonment.

15 G. Any person who violates or attempts to violate the
16 provisions of subsection B of this section and who gains or attempts
17 to gain any property or who gains or attempts to gain anything of
18 value as a result of the nonconsensual dissemination or threatened
19 dissemination of private sexual images or artificially generated
20 sexual depictions shall, upon conviction, be guilty of a Class D1
21 felony offense punishable by imprisonment ~~in the custody of the~~
22 ~~Department of Corrections for not more than five (5) years~~ as
23 provided for in subsections B through F of Section 20N of this
24 title. A second or subsequent violation of this subsection shall be

1 a Class D1 felony offense punishable by imprisonment ~~in the custody~~
2 ~~of the Department of Corrections for not more than ten (10) years as~~
3 provided for in subsections B through F of Section 20N of this title
4 and the offender shall be required to register as a sex offender
5 under the Sex Offenders Registration Act.

6 H. The state shall not have the discretion to file a
7 misdemeanor charge, pursuant to Section 234 of Title 22 of the
8 Oklahoma Statutes, for a violation pursuant to subsection G of this
9 section.

10 I. The court shall have the authority to order the defendant to
11 remove the disseminated image or artificially generated sexual
12 depictions should the court find it is in the power of the defendant
13 to do so.

14 J. Nothing in this section shall prohibit the prosecution of a
15 person pursuant to the provisions of Section 1021.2, 1021.3, 1024.1,
16 1024.2, or 1040.12a of this title or any other applicable statute.

17 K. Any person who violates the provisions of subsection B of
18 this section by disseminating three or more images or artificially
19 generated sexual depictions within a six-month period shall, upon
20 conviction, be guilty of a Class D1 felony offense punishable by
21 imprisonment ~~in the custody of the Department of Corrections for not~~
22 ~~more than ten (10) years as provided for in subsections B through F~~
23 of Section 20N of this title.
24

1 SECTION 38. REPEALER 21 O.S. 2021, Section 1040.13b, as
2 last amended by Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
3 2025, Section 1040.13b), is hereby repealed.

4 SECTION 39. AMENDATORY 21 O.S. 2021, Section 1111, as
5 last amended by Section 1, Chapter 60, O.S.L. 2025 (21 O.S. Supp.
6 2025, Section 1111), is amended to read as follows:

7 Section 1111. A. Rape is an act of sexual intercourse
8 involving vaginal or anal penetration accomplished with a male or
9 female within or without the bonds of matrimony who may be of the
10 same or the opposite sex as the perpetrator under any of the
11 following circumstances:

12 1. Where the victim is under ~~sixteen (16)~~ eighteen (18) years
13 of age;

14 2. Where the victim is incapable through mental illness or any
15 other unsoundness of mind, whether temporary or permanent, of giving
16 legal consent;

17 3. Where force or violence is used or threatened, accompanied
18 by apparent power of execution to the victim or to another person;

19 4. Where the victim is intoxicated by a narcotic or anesthetic
20 agent, administered by or with the privity of the accused as a means
21 of forcing the victim to submit;

22 5. Where the victim is at the time unconscious of the nature of
23 the act and this fact is known to the accused;

1 6. Where the victim submits to sexual intercourse under the
2 belief that the person committing the act is a spouse, and this
3 belief is induced by artifice, pretense, or concealment practiced by
4 the accused or by the accused in collusion with the spouse with
5 intent to induce that belief. In all cases of collusion between the
6 accused and the spouse to accomplish such act, both the spouse and
7 the accused, upon conviction, shall be deemed guilty of rape;

8 7. Where the victim is under the legal custody or supervision
9 of a state agency, a federal agency, a county, a municipality, or a
10 political subdivision and engages in sexual intercourse with a
11 state, federal, county, municipal, or political subdivision employee
12 or an employee of a contractor of the state, the federal government,
13 a county, a municipality, or a political subdivision that exercises
14 authority over the victim, or the subcontractor or employee of a
15 subcontractor of the contractor of the state or federal government,
16 a county, a municipality, or a political subdivision that exercises
17 authority over the victim;

18 8. Where the victim is ~~at least sixteen (16) years of age and~~
19 ~~is~~ less than twenty (20) years of age and is a student, or under the
20 legal custody or supervision of any public or private elementary or
21 secondary school, junior high or high school, or public vocational
22 school, and engages in sexual intercourse with a person who is
23 eighteen (18) years of age or older and is an employee, contractor,
24 or subcontractor of a school system. For purposes of this section,

1 "employee of a school system" shall include employed and contracted
2 school resource officers and security guards;

3 9. Where the victim is nineteen (19) years of age or younger
4 and is in the legal custody of a state agency, federal agency or
5 tribal court and engages in sexual intercourse with a foster parent
6 or foster parent applicant; or

7 10. Where the victim is a student at a secondary school, is
8 concurrently enrolled at an institution of higher education, and
9 engages in acts pursuant to this subsection with a perpetrator who
10 is an employee of the institution of higher education ~~of~~ at which
11 the victim is enrolled.

12 B. "Employee of an institution of higher education", for
13 purposes of this section, means faculty, adjunct faculty,
14 instructors, volunteers, or an employee of a business contracting
15 with an institution of higher education who may exercise, at any
16 time, institutional authority over the victim. Employee of an
17 institution of higher education shall not include an enrolled
18 student who is not more than three (3) years of age or older than
19 the concurrently enrolled student and who is employed or
20 volunteering, in any capacity, for the institution of higher
21 education.

22 SECTION 40. REPEALER 21 O.S. 2021, Section 1111, as last
23 amended by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp. 2025,
24 Section 1111), is hereby repealed.

1 SECTION 41. REPEALER 21 O.S. 2021, Section 1111, as last
2 amended by Section 1, Chapter 365, O.S.L. 2025 (21 O.S. Supp. 2025,
3 Section 1111), is hereby repealed.

4 SECTION 42. REPEALER 21 O.S. 2021, Section 1115, as
5 amended by Section 5, Chapter 455, O.S.L. 2002, is hereby repealed.

6 SECTION 43. AMENDATORY 21 O.S. 2021, Section 1123, as
7 last amended by Section 2, Chapter 281, O.S.L. 2025 (21 O.S. Supp.
8 2025, Section 1123), is amended to read as follows:

9 Section 1123. A. It is a Class A3 felony offense for any
10 person to knowingly and intentionally:

11 1. Make any oral, written or electronically or computer-
12 generated lewd or indecent proposal to any child under sixteen (16)
13 years of age, or other individual the person believes to be a child
14 under sixteen (16) years of age, for the child to have unlawful
15 sexual relations or sexual intercourse with any person;

16 2. Look upon, touch, maul, or feel the body or private parts of
17 any child under sixteen (16) years of age in any lewd or lascivious
18 manner by any acts against public decency and morality, as defined
19 by law;

20 3. Ask, invite, entice, or persuade any child under sixteen
21 (16) years of age, or other individual the person believes to be a
22 child under sixteen (16) years of age, to go alone with any person
23 to a secluded, remote, or secret place, with the unlawful and
24 willful intent and purpose then and there to commit any crime

1 against public decency and morality, as defined by law, with the
2 child;

3 4. In any manner lewdly or lasciviously look upon, touch, maul,
4 or feel the body or private parts of any child under sixteen (16)
5 years of age in any indecent manner or in any manner relating to
6 sexual matters or sexual interest; or

7 5. In a lewd and lascivious manner and for the purpose of
8 sexual gratification:

- 9 a. urinate or defecate upon a child under sixteen (16)
10 years of age, or force or require a child to defecate
11 or urinate upon the body or private parts of another,
12 or for the purpose of sexual gratification,
- 13 b. ejaculate upon or in the presence of a child,
- 14 c. cause, expose, force or require a child to look upon
15 the body or private parts of another person,
- 16 d. force or require any child under sixteen (16) years of
17 age or other individual the person believes to be a
18 child under sixteen (16) years of age, to view any
19 obscene materials, child sexual abuse material or
20 materials deemed harmful to minors as such terms are
21 defined by Sections 1024.1 and 1040.75 of this title,
- 22 e. cause, expose, force or require a child to look upon
23 sexual acts performed in the presence of the child, or
24

1 f. force or require a child to touch or feel the body or
2 private parts of the child or another person.

3 Any person convicted of any violation of this subsection shall
4 be punished by imprisonment in the custody of the Department of
5 Corrections for not less than three (3) years nor more than twenty
6 (20) years, except when the child is under twelve (12) years of age
7 at the time the offense is committed, and in such case the person
8 shall, upon conviction, be punished by death or by imprisonment in
9 the custody of the Department of Corrections for a term of not less
10 than ten (10) years, life, or life without parole. The provisions
11 of this subsection shall not apply unless the accused is at least
12 three (3) years older than the victim, except when accomplished by
13 the use of force or fear. Except as provided in Section 51.1a of
14 this title, any person convicted of a second or subsequent violation
15 of this subsection shall be guilty of a felony punishable as
16 provided in this subsection and shall not be eligible for probation,
17 suspended or deferred sentence. Except as provided in Section 51.1a
18 of this title, any person convicted of a third or subsequent
19 violation of this subsection shall be guilty of a felony punishable
20 by imprisonment in the custody of the Department of Corrections for
21 a term of life or life without parole, in the discretion of the
22 jury, or in case the jury fails or refuses to fix punishment then
23 the same shall be pronounced by the court. Any person convicted of
24 a violation of this subsection after having been twice convicted of

1 a violation of subsection A of Section 1114 of this title, Section
2 888 of this title, sexual abuse of a child pursuant to Section 843.5
3 of this title, or of any attempt to commit any of these offenses or
4 any combination of convictions pursuant to these sections shall be
5 punished by imprisonment in the custody of the Department of
6 Corrections for a term of life or life without parole.

7 B. No person shall commit sexual battery on any other person.

8 "Sexual battery" shall mean the intentional touching, mauling or
9 feeling of the body or private parts of any person sixteen (16)
10 years of age or older, in a lewd and lascivious manner:

11 1. Without the consent of that person;

12 2. When committed by a state, county, municipal or political
13 subdivision employee or a contractor or an employee of a contractor
14 of the state, a county, a municipality or political subdivision of
15 this state upon a person who is under the legal custody, supervision
16 or authority of a state agency, a county, a municipality or a
17 political subdivision of this state, or the subcontractor or
18 employee of a subcontractor of the contractor of the state or
19 federal government, a county, a municipality or a political
20 subdivision of this state;

21 3. When committed upon a person who is at least sixteen (16)
22 years of age and is less than twenty (20) years of age and is a
23 student, or in the legal custody or supervision of any public or
24 private elementary or secondary school, or technology center school,

1 by a person who is eighteen (18) years of age or older and is an
2 employee of a school system;

3 4. When committed upon a person who is nineteen (19) years of
4 age or younger and is in the legal custody of a state agency,
5 federal agency or a tribal court, by a foster parent or foster
6 parent applicant; or

7 5. When the victim is a student at a secondary school, is
8 concurrently enrolled at an institution of higher education, and
9 engages in acts pursuant to this subsection with a perpetrator who
10 is an employee of the institution of higher education of which the
11 student is enrolled.

12 As used in this subsection, "employee of an institution of
13 higher education" means faculty, adjunct faculty, instructors,
14 volunteers, or an employee of a business contracting with an
15 institution of higher education who may exercise, at any time,
16 institutional authority over the victim. Employee of an institution
17 of higher education shall not include an enrolled student who is not
18 more than three (3) years of age or older than the concurrently
19 enrolled student and who is employed or volunteering, in any
20 capacity, for the institution of higher education.

21 As used in this subsection, "employee of a school system" means
22 a teacher, principal or other duly appointed person employed by a
23 school system or an employee of a firm contracting with a school
24 system, including a school resource officer and security guard.

1 C. No person shall in any manner lewdly or lasciviously:

2 1. Look upon, touch, maul, or feel the body or private parts of
3 any human corpse in any indecent manner relating to sexual matters
4 or sexual interest; or

5 2. Urinate, defecate or ejaculate upon any human corpse.

6 D. Any person convicted of a violation of subsection B or C of
7 this section shall be deemed guilty of a Class B4 felony offense and
8 shall be punished by imprisonment in the custody of the Department
9 of Corrections for not more than ten (10) years.

10 E. The fact that an undercover operative or law enforcement
11 officer was involved in the detection and investigation of an
12 offense pursuant to this section shall not constitute a defense to a
13 prosecution under this section.

14 F. Except for persons sentenced to life or life without parole,
15 any person sentenced to imprisonment for two (2) years or more for a
16 violation of this section shall be required to serve a term of post-
17 imprisonment supervision pursuant to subparagraph f of paragraph 1
18 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes
19 under conditions determined by the Department of Corrections. The
20 jury shall be advised that the mandatory post-imprisonment
21 supervision shall be in addition to the actual imprisonment.

22 SECTION 44. REPEALER 21 O.S. 2021, Section 1123, as last
23 amended by Section 2, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025,
24 Section 1123), is hereby repealed.

1 SECTION 45. REPEALER 21 O.S. 2021, Section 1123, as last
2 amended by Section 38, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
3 Section 1123), is hereby repealed.

4 SECTION 46. AMENDATORY 21 O.S. 2021, Section 1173, as
5 last amended by Section 1, Chapter 145, O.S.L. 2025 (21 O.S. Supp.
6 2025, Section 1173), is amended to read as follows:

7 Section 1173. A. Any person who willfully, maliciously, and
8 repeatedly follows or harasses another person in a manner that:

9 1. Would cause a reasonable person or a member of the immediate
10 family of that person as defined in subsection F of this section to
11 feel frightened, intimidated, threatened, harassed, or molested; and

12 2. Actually causes the person being followed or harassed to
13 feel terrorized, frightened, intimidated, threatened, harassed, or
14 molested,

15 shall, upon conviction, be guilty of the crime of stalking, which is
16 a felony punishable by imprisonment in the custody of the Department
17 of Corrections for a term not to exceed three (3) years, or by a
18 fine not to exceed Five Thousand Dollars (\$5,000.00), or by both
19 such fine and imprisonment. Any person convicted of a second
20 violation of the provisions of this subsection shall be punished by
21 imprisonment in the custody of the Department of Corrections for a
22 term not to exceed six (6) years, or by a fine not to exceed Ten
23 Thousand Dollars (\$10,000.00), or by both such fine and
24 imprisonment. Any person convicted of a third or subsequent

1 violation of the provisions of this subsection shall be punished by
2 imprisonment in the custody of the Department of Corrections for a
3 term not to exceed twelve (12) years, or by a fine not to exceed
4 Fifteen Thousand Dollars (\$15,000.00), or by both such fine and
5 imprisonment.

6 B. Any person who violates the provisions of subsection A of
7 this section when:

8 1. There is a permanent or temporary restraining order, a
9 protective order, an emergency ex parte protective order, or an
10 injunction in effect prohibiting the behavior described in
11 subsection A of this section against the same party, when the person
12 violating the provisions of subsection A of this section has actual
13 notice of the issuance of such order or injunction;

14 2. Said person is on probation or parole, a condition of which
15 prohibits the behavior described in subsection A of this section
16 against the same party or under the conditions of a community or
17 alternative punishment; or

18 3. Said person, within ten (10) years preceding the violation
19 of subsection A of this section, completed the execution of sentence
20 for a conviction of a crime involving the use or threat of violence
21 against the same party, or against any member of the immediate
22 family of such party,
23 shall, upon conviction, be guilty of a Class B5 felony offense
24 punishable by imprisonment in the custody of the Department of

1 Corrections for a term not to exceed fifteen (15) years, or by a
2 fine not to exceed Twenty Thousand Dollars (\$20,000.00), or by both
3 such fine and imprisonment.

4 C. Any person who:

5 1. Commits a second act of stalking within ten (10) years of
6 the completion of sentence for a prior conviction of stalking; or

7 2. Has a prior conviction of stalking and, after being served
8 with a protective order that prohibits contact with an individual,
9 knowingly makes unconsented contact with the same individual,
10 shall, upon conviction, be guilty of a felony punishable by
11 imprisonment in the custody of the Department of Corrections for a
12 term not to exceed twenty (20) years, or by a fine not to exceed
13 Twenty-five Thousand Dollars (\$25,000.00), or by both such fine and
14 imprisonment.

15 D. Any person who commits an act of stalking within ten (10)
16 years of the completion of execution of sentence for a prior
17 conviction under subsection B or C of this section shall, upon
18 conviction, be guilty of a Class B4 felony offense punishable by
19 imprisonment in the custody of the Department of Corrections for a
20 term not to exceed twenty-five (25) years, or by a fine not to
21 exceed Thirty Thousand Dollars (\$30,000.00), or by both such fine
22 and imprisonment.

23 E. Evidence that the defendant continued to engage in a course
24 of conduct involving repeated unconsented contact, as defined in

1 subsection F of this section, with the victim after having been
2 requested by the victim to discontinue the same or any other form of
3 unconsented contact, and to refrain from any further unconsented
4 contact with the victim, shall give rise to a rebuttable presumption
5 that the continuation of the course of conduct caused the victim to
6 feel terrorized, frightened, intimidated, threatened, harassed, or
7 molested.

8 F. For purposes of determining the crime of stalking, the
9 following definitions shall apply:

10 1. "Harasses" means a pattern or course of conduct directed
11 toward another individual that includes, but is not limited to,
12 repeated or continuing unconsented contact, that would cause a
13 reasonable person to suffer emotional distress, and that actually
14 causes emotional distress to the victim. Harassment shall include
15 harassing or obscene phone calls as prohibited by Section 1172 of
16 this title and conduct prohibited by Section 850 of this title.
17 Harassment does not include constitutionally protected activity or
18 conduct that serves a legitimate purpose;

19 2. "Course of conduct" means a series of two or more separate
20 acts over a period of time, however short or long, evidencing a
21 continuity of purpose, including any of the following:

22 a. maintaining a visual or physical proximity to the
23 victim,
24

- 1 b. approaching or confronting the victim in a public
2 place or on private property,
3 c. appearing at the workplace of the victim or contacting
4 the employer or coworkers of the victim,
5 d. appearing at the home of the victim or contacting the
6 neighbors of the victim,
7 e. entering onto or remaining on property owned, leased,
8 or occupied by the victim,
9 f. contacting the victim by telephone, text message,
10 electronic message, electronic mail, or other means of
11 electronic communication or causing the telephone or
12 electronic device of the victim or the telephone or
13 electronic device of any other person to ring or
14 generate notifications repeatedly or continuously,
15 regardless of whether a conversation ensues,
16 g. photographing, videotaping, audiotaping, or, through
17 any other electronic means, monitoring or recording
18 the activities of the victim. This subparagraph
19 applies regardless of where the act occurs,
20 h. sending to the victim any physical or electronic
21 material or contacting the victim by any means,
22 including any message, comment, or other content
23 posted on any Internet site or web application,
24

- 1 i. sending to a family member or member of the household
2 of the victim, or any current or former employer of
3 the victim, or any current or former coworker of the
4 victim, or any friend of the victim, any physical or
5 electronic material or contacting such person by any
6 means, including any message, comment, or other
7 content posted on any Internet site or web
8 application, for the purpose of obtaining information
9 about, disseminating information about, or
10 communicating with the victim,
- 11 j. placing an object on or delivering an object to
12 property owned, leased, or occupied by the victim,
- 13 k. delivering an object to a family member or member of
14 the household of the victim, or an employer, coworker,
15 or friend of the victim, or placing an object on, or
16 delivering an object to, property owned, leased, or
17 occupied by such a person with the intent that the
18 object be delivered to the victim, or
- 19 l. causing a person to engage in any of the acts
20 described in subparagraphs a through k of this
21 paragraph.

22 Constitutionally protected activity is not included within the
23 meaning of "course of conduct";
24

1 3. "Emotional distress" means significant mental suffering or
2 distress that may, but does not necessarily require, medical or
3 other professional treatment or counseling;

4 4. "Unconsented contact" means any contact with another
5 individual that is initiated or continued without the consent of the
6 individual, or in disregard of that individual's expressed desire
7 that the contact be avoided or discontinued. Constitutionally
8 protected activity is not included within the meaning of unconsented
9 contact. Unconsented contact includes but is not limited to any of
10 the following:

11 a. following or appearing within the sight of that
12 individual,

13 b. approaching or confronting that individual in a public
14 place or on private property,

15 c. appearing at the workplace or residence of that
16 individual,

17 d. entering onto or remaining on property owned, leased,
18 or occupied by that individual,

19 e. contacting that individual by telephone,

20 f. sending mail or electronic communications to that
21 individual, and

22 g. placing an object on, or delivering an object to,
23 property owned, leased, or occupied by that
24 individual;

1 5. "Member of the immediate family", for the purposes of this
2 section, means any spouse, parent, child, person related within the
3 third degree of consanguinity or affinity or any other person who
4 regularly resides in the household or who regularly resided in the
5 household within the prior six (6) months; and

6 6. "Following" shall include the tracking of the movement or
7 location of an individual through the use of a Global Positioning
8 System (GPS) device or other monitoring device by a person, or
9 person who acts on behalf of another, without the consent of the
10 individual whose movement or location is being tracked; provided,
11 this shall not apply to the lawful use of a GPS device or other
12 monitoring device or to the use by a new or used motor vehicle
13 dealer or other motor vehicle creditor of a GPS device or other
14 monitoring device, including a device containing technology used to
15 remotely disable the ignition of a motor vehicle, in connection with
16 lawful action after default of the terms of a motor vehicle credit
17 sale, loan or lease, and with the express written consent of the
18 owner or lessee of the motor vehicle.

19 G. Any pleas of guilty or nolo contendere or finding of guilt
20 to a violation of any provision of this section shall constitute a
21 conviction of the offense for the purpose of any subsection of this
22 section under which the existence of a prior conviction is relevant
23 for a period of ten (10) years following the completion of any
24 sentence or court imposed probationary term.

1 SECTION 47. REPEALER 21 O.S. 2021, Section 1173, as last
2 amended by Section 118, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
3 2025, Section 1173), is hereby repealed.

4 SECTION 48. AMENDATORY 21 O.S. 2021, Section 1277, as
5 amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025,
6 Section 1277), is amended to read as follows:

7 Section 1277.

8 UNLAWFUL CARRY IN CERTAIN PLACES

9 A. It shall be unlawful for any person, including a person in
10 possession of a valid handgun license issued pursuant to the
11 provisions of the Oklahoma Self-Defense Act, to carry any concealed
12 or unconcealed firearm into any of the following places:

13 1. Any building or office space which is owned or leased by a
14 city, town, county, or state governmental authority for the purpose
15 of conducting business with the public. However, the governing body
16 of a city or town may authorize the concealed carry of handguns into
17 any building or office space that is owned or leased by a city or
18 town, except those places listed in paragraph 2 of this subsection;

19 2. Any courthouse, courtroom, prison, jail, detention facility,
20 or any facility used to process, hold, or house arrested persons,
21 prisoners, or persons alleged delinquent or adjudicated delinquent,
22 except as provided in Section 21 of Title 57 of the Oklahoma
23 Statutes;

24

1 3. Any public or private elementary or public or private
2 secondary school, except as provided in subsections C and D of this
3 section;

4 4. Any publicly owned or operated sports arena or venue during
5 a professional sporting event, unless allowed by the event holder;

6 5. Any place where gambling is authorized by law, unless
7 allowed by the property owner;

8 6. Any other place specifically prohibited by law; and

9 7. Any property set aside by a county, city, town, public trust
10 with a county, city, or town as a beneficiary, or state governmental
11 authority for an event that is secured with minimum security
12 provisions. For purposes of this paragraph, a minimum security
13 provision consists of a location that is secured utilizing the
14 following:

15 a. a metallic-style security fence that is at least eight
16 (8) feet in height that encompasses the property and
17 is secured in such a way as to deter unauthorized
18 entry,

19 b. controlled access points staffed by a uniformed,
20 commissioned peace officer, and

21 c. a metal detector whereby persons walk or otherwise
22 travel with their property through or by the metal
23 detector.
24

1 B. It shall be lawful for a person to carry a concealed or
2 unconcealed firearm on the following properties:

3 1. Any property set aside for the use or parking of any
4 vehicle, whether attended or unattended, by a city, town, county, or
5 state governmental authority;

6 2. Any property set aside for the use or parking of any
7 vehicle, whether attended or unattended, which is open to the
8 public, or by any entity engaged in gambling authorized by law;

9 3. Any property adjacent to a building or office space in which
10 concealed or unconcealed weapons are prohibited by the provisions of
11 this section;

12 4. Any property designated by a city, town, county, or state
13 governmental authority as a park, recreational area, wildlife
14 refuge, wildlife management area, or fairgrounds; provided, nothing
15 in this paragraph shall be construed to authorize any entry by a
16 person in possession of a concealed or unconcealed firearm into any
17 building, office space, or event which is specifically prohibited by
18 the provisions of subsection A of this section;

19 5. Any property set aside by a public or private elementary or
20 secondary school for the use or parking of any vehicle, whether
21 attended or unattended; provided, however, the firearm shall be
22 stored and hidden from view in a locked motor vehicle when the motor
23 vehicle is left unattended on school property; and
24

1 6. Any public property set aside temporarily by a county, city,
2 town, public trust with a county, city, or town as a beneficiary, or
3 state governmental authority for the holder of an event permit that
4 is without minimum security provisions, as such term is defined in
5 paragraph 7 of subsection A of this section; provided, the carry of
6 firearms within the permitted event area shall be limited to
7 concealed carry of a handgun unless otherwise authorized by the
8 holder of the event permit.

9 Nothing contained in any provision of this subsection or
10 subsection C of this section shall be construed to authorize or
11 allow any person in control of any place described in subsection A
12 of this section to establish any policy or rule that has the effect
13 of prohibiting any person in lawful possession of a handgun license
14 or otherwise in lawful possession of a firearm from carrying or
15 possessing the firearm on the property described in this subsection.

16 C. A concealed or unconcealed weapon may be carried onto
17 private school property or in any school bus or vehicle used by any
18 private school for transportation of students or teachers by a
19 person who is licensed pursuant to the Oklahoma Self-Defense Act,
20 provided a policy has been adopted by the governing entity of the
21 private school that authorizes the carrying and possession of a
22 weapon on private school property or in any school bus or vehicle
23 used by a private school. Except for acts of gross negligence or
24 willful or wanton misconduct, a governing entity of a private school

1 that adopts a policy which authorizes the possession of a weapon on
2 private school property, a school bus, or a vehicle used by the
3 private school shall not be subject to liability for any injuries
4 arising from the adoption of the policy. The provisions of this
5 subsection shall not apply to claims pursuant to the Administrative
6 Workers' Compensation Act.

7 D. ~~Notwithstanding paragraph 3 of subsection A of this section,~~
8 a A board of education of a school district may adopt a policy
9 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to
10 authorize the carrying of a handgun onto school property by school
11 personnel specifically designated by the board of education,
12 provided such personnel either:

- 13 1. Possess a valid armed security guard license as provided for
14 in the Oklahoma Security Guard and Private Investigator Act; or
- 15 2. Hold a valid reserve peace officer certification as provided
16 for in Section 3311 of Title 70 of the Oklahoma Statutes.

17 Nothing in this subsection shall be construed to restrict
18 authority granted elsewhere in law to carry firearms.

19 E. Notwithstanding the provisions of subsection A of this
20 section, on any property designated as a municipal zoo or park of
21 any size that is owned, leased, operated, or managed by:

- 22 1. A public trust created pursuant to the provisions of Section
23 176 of Title 60 of the Oklahoma Statutes; or
- 24 2. A nonprofit entity,

1 an individual shall be allowed to carry a concealed handgun but not
2 openly carry a handgun on the property.

3 F. Any person violating the provisions of paragraph 2 or 3 of
4 subsection A of this section shall, upon conviction, be guilty of a
5 misdemeanor punishable by a fine not to exceed Two Hundred Fifty
6 Dollars (\$250.00). A person violating any other provision of
7 subsection A of this section may be denied entrance onto the
8 property or removed from the property. If the person refuses to
9 leave the property and a peace officer is summoned, the person may
10 be issued a citation for an amount not to exceed Two Hundred Fifty
11 Dollars (\$250.00).

12 G. No person in possession of a valid handgun license issued
13 pursuant to the provisions of the Oklahoma Self-Defense Act or who
14 is carrying or in possession of a firearm as otherwise permitted by
15 law or who is carrying or in possession of a machete, blackjack,
16 loaded cane, hand chain, or metal knuckles shall be authorized to
17 carry the firearm, machete, blackjack, loaded cane, hand chain, or
18 metal knuckles into or upon any college, university, or technology
19 center school property, except as provided in this subsection. For
20 purposes of this subsection, the following property shall not be
21 construed to be college, university, or technology center school
22 property:

23 1. Any property set aside for the use or parking of any motor
24 vehicle, whether attended or unattended, provided the firearm,

1 machete, blackjack, loaded cane, hand chain, or metal knuckles are
2 carried or stored as required by law and the firearm, machete,
3 blackjack, loaded cane, hand chain, or metal knuckles are not
4 removed from the motor vehicle without the prior consent of the
5 college or university president or technology center school
6 administrator while the vehicle is on any college, university, or
7 technology center school property;

8 2. Any property authorized for possession or use of firearms,
9 machetes, blackjacks, loaded canes, hand chains, or metal knuckles
10 by college, university, or technology center school policy; and

11 3. Any property authorized by the written consent of the
12 college or university president or technology center school
13 administrator, provided the written consent is carried with the
14 firearm, machete, blackjack, loaded cane, hand chain, or metal
15 knuckles and the valid handgun license while on college, university,
16 or technology center school property.

17 The college, university, or technology center school may notify
18 the Oklahoma State Bureau of Investigation within ten (10) days of a
19 violation of any provision of this subsection by a licensee. Upon
20 receipt of a written notification of violation, the Bureau shall
21 give a reasonable notice to the licensee and hold a hearing. At the
22 hearing, upon a determination that the licensee has violated any
23 provision of this subsection, the licensee may be subject to an
24

1 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may
2 have the handgun license suspended for three (3) months.

3 Nothing contained in any provision of this subsection shall be
4 construed to authorize or allow any college, university, or
5 technology center school to establish any policy or rule that has
6 the effect of prohibiting any person in lawful possession of a
7 handgun license or any person in lawful possession of a firearm,
8 machete, blackjack, loaded cane, hand chain, or metal knuckles from
9 possession of a firearm, machete, blackjack, loaded cane, hand
10 chain, or metal knuckles in places described in paragraphs 1, 2, and
11 3 of this subsection. Nothing contained in any provision of this
12 subsection shall be construed to limit the authority of any college,
13 university, or technology center school in this state from taking
14 administrative action against any student for any violation of any
15 provision of this subsection.

16 H. The provisions of this section shall not apply to the
17 following:

18 1. Any peace officer or any person authorized by law to carry a
19 firearm in the course of employment;

20 2. Any district judge, associate district judge, ~~or~~ special
21 district judge, Judge of the Court of Civil Appeals, Judge of the
22 Court of Criminal Appeals, or Justice of the Supreme Court who is in
23 possession of a valid handgun license issued pursuant to the
24 provisions of the Oklahoma Self-Defense Act and whose name appears

1 on a list maintained by the Administrative Director of the Courts,
2 when acting in the course and scope of employment within the
3 courthouses of the county that falls within the jurisdiction of the
4 district judge, associate district judge, or special district judge;

5 3. Any private investigator with a firearms authorization when
6 acting in the course and scope of employment;

7 4. ~~Any~~ An elected official of a county, who is in possession of
8 a valid handgun license issued pursuant to the provisions of the
9 Oklahoma Self-Defense Act, may carry a concealed handgun when acting
10 in the performance of his or her duties within the courthouses of
11 the county in which he or she was elected. The provisions of this
12 paragraph shall not allow the elected county official to carry the
13 handgun into a courtroom;

14 5. The sheriff of any county may authorize certain employees of
15 the county, who possess a valid handgun license issued pursuant to
16 the provisions of the Oklahoma Self-Defense Act, to carry a
17 concealed handgun when acting in the course and scope of employment
18 within the courthouse in the county in which the person is employed.
19 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff
20 from requiring additional instruction or training before granting
21 authorization to carry a concealed handgun within the courthouse.
22 The provisions of this paragraph and of paragraph 6 of this
23 subsection shall not allow the county employee to carry the handgun
24

1 into a courtroom, sheriff's office, adult or juvenile jail, or any
2 other prisoner detention area;

3 6. The board of county commissioners of any county may
4 authorize certain employees of the county, who possess a valid
5 handgun license issued pursuant to the provisions of the Oklahoma
6 Self-Defense Act, to carry a concealed handgun when acting in the
7 course and scope of employment on county annex facilities or grounds
8 surrounding the county courthouse that fall within the jurisdiction
9 of the county employees; and

10 7. Any municipal judge, who is in possession of a valid handgun
11 license issued pursuant to the provisions of the Oklahoma Self-
12 Defense Act, when acting in the course and scope of employment
13 within the courthouses of the municipality that are within the
14 jurisdiction of the municipal judge.

15 I. 1. Any elected official of a municipality or any municipal
16 employee approved by the governing body of a municipality, who
17 possesses a valid handgun license issued pursuant to the provisions
18 of the Oklahoma Self-Defense Act, may carry a concealed handgun when
19 acting in the performance of his or her official duties within
20 municipal buildings that are within the jurisdiction of the elected
21 official or municipal employee.

22 2. For purposes of this subsection, a firearm may not be
23 present inside a firearm-prohibited location, which shall include:
24

1 a. any building or office space on municipally owned or
2 leased property designated as a firearm-prohibited
3 location by the municipality, municipal trust, or
4 municipal authority, and

5 b. any police department, courthouse, courtroom, prison,
6 jail, detention facility, or any facility used to
7 process, hold, or house arrested persons, prisoners,
8 or persons alleged delinquent or adjudicated
9 delinquent.

10 3. Nothing in this subsection shall be construed to require an
11 elected official or designated employee of the municipality to carry
12 a firearm as a condition of employment or service with the
13 municipality.

14 J. For the purposes of this section, "motor vehicle" means any
15 automobile, truck, minivan, sport utility vehicle, or motorcycle, as
16 defined in Section 1-135 of Title 47 of the Oklahoma Statutes,
17 equipped with a locked accessory container within or affixed to the
18 motorcycle.

19 SECTION 49. REPEALER 21 O.S. 2021, Section 1277, as
20 amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025,
21 Section 1277), is hereby repealed.

22 SECTION 50. AMENDATORY 21 O.S. 2021, Section 1289.16, as
23 amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp. 2025,
24 Section 1289.16), is amended to read as follows:

1 Section 1289.16.

2 FELONY POINTING FIREARMS

3 A. It shall be lawful to point a firearm, knife, or any other
4 deadly weapon at another person or persons by:

5 1. A person who can legally own or possess a weapon pursuant to
6 the provisions of Section 1272 of this title:

7 a. during an act of self-defense, or

8 b. in defense of real or private property, whether owned,
9 leased, or occupied by permission of the property
10 owner and whether or not the person possesses a valid
11 handgun license issued pursuant to the Oklahoma Self-
12 Defense Act;

13 2. A person in the defensive display of a firearm or other
14 deadly weapon, as provided for in Section 1289.25 of this title;

15 3. Law enforcement authorities in the performance of their
16 duties;

17 4. Armed security guards licensed by the Council on Law
18 Enforcement Education and Training pursuant to the Oklahoma Security
19 Guard and Private Investigator Act in the performance of their
20 duties;

21 5. Members of the state military forces in the performance of
22 their duties;

23 6. Members of the federal military reserve and active military
24 components in the performance of their duties;

1 7. Any federal government law enforcement officer in the
2 performance of any duty; or

3 8. Any person during the performance of a play on stage, while
4 participating in a rodeo, or when participating in a television
5 program or film project.

6 B. It shall be unlawful for any person to willfully and without
7 lawful cause point a firearm, knife, or any other deadly weapon,
8 whether loaded or not, at any person or persons for the purpose of
9 threatening or with the intention of discharging the firearm or with
10 any malice or for any purpose of injuring, either through physical
11 injury or mental or emotional intimidation, or for purposes of
12 whimsy, humor, or prank, or in anger or otherwise.

13 C. Any person convicted of a violation of the provisions of
14 this section shall be guilty of a Class B4 felony offense and shall
15 be punished as provided in Section 1289.17 of this title.

16 SECTION 51. REPEALER 21 O.S. 2021, Section 1289.16, as
17 amended by Section 131, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
18 2025, Section 1289.16), is hereby repealed.

19 SECTION 52. REPEALER 21 O.S. 2021, Section 1290.5, as
20 amended by Section 5, Chapter 146, O.S.L. 2021, is hereby repealed.

21 SECTION 53. REPEALER 21 O.S. 2021, Section 1451, as
22 amended by Section 1, Chapter 221, O.S.L. 2016, is hereby repealed.

23 SECTION 54. REPEALER 21 O.S. 2021, Section 1521, as
24 amended by Section 2, Chapter 221, O.S.L. 2016, is hereby repealed.

1 SECTION 55. REPEALER 21 O.S. 2021, Section 1541.2, as
2 amended by Section 5, Chapter 221, O.S.L. 2016, is hereby repealed.

3 SECTION 56. REPEALER 21 O.S. 2021, Section 1541.3, as
4 amended by Section 6, Chapter 221, O.S.L. 2016, is hereby repealed.

5 SECTION 57. REPEALER 21 O.S. 2021, Section 1577, as
6 amended by Section 11, Chapter 221, O.S.L. 2016, is hereby repealed.

7 SECTION 58. REPEALER 21 O.S. 2021, Section 1578, as
8 amended by Section 12, Chapter 221, O.S.L. 2016, is hereby repealed.

9 SECTION 59. REPEALER 21 O.S. 2021, Section 1579, as
10 amended by Section 13, Chapter 221, O.S.L. 2016, is hereby repealed.

11 SECTION 60. REPEALER 21 O.S. 2021, Section 1621, as
12 amended by Section 15, Chapter 221, O.S.L. 2016, is hereby repealed.

13 SECTION 61. REPEALER 21 O.S. 2021, Section 1704, as
14 amended by Section 16, Chapter 221, O.S.L. 2016, is hereby repealed.

15 SECTION 62. REPEALER 21 O.S. 2021, Section 1705, as
16 amended by Section 17, Chapter 221, O.S.L. 2016, is hereby repealed.

17 SECTION 63. REPEALER 21 O.S. 2021, Section 1713, as
18 amended by Section 18, Chapter 221, O.S.L. 2016, is hereby repealed.

19 SECTION 64. REPEALER 21 O.S. 2021, Section 1731, as
20 amended by Section 19, Chapter 221, O.S.L. 2016, is hereby repealed.

21 SECTION 65. AMENDATORY 21 O.S. 2021, Section 1903, as
22 amended by Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp. 2025,
23 Section 1903), is amended to read as follows:
24

1 Section 1903. A. No person shall by force or violence, or
2 threat of force or violence, seize or exercise control of any
3 rolling stock transit vehicle. Any person violating this subsection
4 shall be guilty of a Class B1 felony offense and shall, upon
5 conviction, be punished by imprisonment in the custody of the
6 Department of Corrections for not more than twenty (20) years, or by
7 a fine not more than Twenty Thousand Dollars (\$20,000.00), or by
8 both such fine and imprisonment.

9 B. No person shall intimidate, threaten, assault, or batter any
10 driver, attendant, guard, or passenger of any rolling stock transit
11 vehicle or cause disruption to the provided service or cause harm to
12 any person. Any person violating this subsection shall be guilty of
13 a Class B4 felony offense and shall, upon conviction, be punished by
14 imprisonment in the custody of the Department of Corrections for not
15 more than ten (10) years, by a fine not more than Five Thousand
16 Dollars (\$5,000.00), or by both such fine and imprisonment.

17 C. Any person violating subsection A or B of this section using
18 a dangerous or deadly weapon shall be guilty of a Class B1 felony
19 offense, and shall, upon conviction, be punished by imprisonment in
20 the custody of the Department of Corrections for not more than
21 twenty (20) years, by a fine not more than Twenty Thousand Dollars
22 (\$20,000.00), or by both such fine and imprisonment.

23 D. It shall be unlawful for any person to discharge any firearm
24 into or within any rolling stock transit vehicle, terminal, or other

1 transportation facility, unless such action is determined to have
2 been in defensive force resulting from reasonable fear of imminent
3 peril of death or great bodily harm to himself or herself or
4 another. Such person shall, upon conviction, be guilty of a Class
5 B4 felony offense punishable by a fine not more than Five Thousand
6 Dollars (\$5,000.00), by imprisonment in the custody of the
7 Department of Corrections for not more than five (5) years, or by
8 both such fine and imprisonment.

9 SECTION 66. REPEALER 21 O.S. 2021, Section 1903, as
10 amended by Section 62, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
11 Section 1903), is hereby repealed.

12 SECTION 67. AMENDATORY 47 O.S. 2021, Section 11-902, as
13 amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025,
14 Section 11-902), is amended to read as follows:

15 Section 11-902. A. It is unlawful and punishable as provided
16 for in this section for any person to drive, operate, or be in
17 actual physical control of a motor vehicle within this state,
18 whether upon public roads, highways, streets, turnpikes, other
19 public places or upon any private road, street, alley, or lane which
20 provides access to one or more single or multi-family dwellings,
21 who:

22 1. Has a blood or breath alcohol concentration, as defined in
23 Section 756 of this title, of eight-hundredths (0.08) or more at the
24 time of a test of such person's blood or breath;

1 2. Is under the influence of alcohol;

2 3. Has any amount of a Schedule I chemical or controlled
3 substance, as defined in Section 2-204 of Title 63 of the Oklahoma
4 Statutes, or one of its metabolites or analogs in the person's
5 blood, saliva, urine, or any other bodily fluid at the time of a
6 test of such person's blood, saliva, urine, or any other bodily
7 fluid;

8 4. Is under the influence of any intoxicating substance other
9 than alcohol which may render such person incapable of safely
10 driving or operating a motor vehicle. The timing requirement for
11 the administration of tests pursuant to Section 756 of this title
12 shall not apply to this paragraph; or

13 5. Is under the combined influence of alcohol and any other
14 intoxicating substance which may render such person incapable of
15 safely driving or operating a motor vehicle. The timing requirement
16 for the administration of tests pursuant to Section 756 of this
17 title shall not apply to this paragraph.

18 B. The fact that any person charged with a violation of this
19 section is or has been lawfully entitled to use alcohol or a
20 controlled dangerous substance or any other intoxicating substance
21 shall not constitute a defense against any charge of violating this
22 section.

1 C. 1. Any person who is convicted of a violation of the
2 provisions of this section shall be guilty of a misdemeanor for the
3 first offense and shall:

- 4 a. participate in an assessment and evaluation pursuant
5 to subsection H of this section and shall follow all
6 recommendations made in the assessment and evaluation,
- 7 b. be punished by imprisonment in jail for not less than
8 ten (10) days nor more than one (1) year, and
- 9 c. be fined not more than One Thousand Dollars
10 (\$1,000.00).

11 2. Any person who, having been convicted of or having received
12 deferred judgment for a violation of this section or a violation
13 pursuant to the provisions of any law of this state or another state
14 prohibiting the offenses provided in this section, Section 11-904 of
15 this title, or paragraph 4 of subsection A of Section 852.1 of Title
16 21 of the Oklahoma Statutes, or having a prior conviction in a
17 municipal criminal court of record for the violation of a municipal
18 ordinance prohibiting the offense provided for in this section,
19 commits a subsequent violation of this section within ten (10) years
20 of the date following the completion of the execution of such
21 sentence or deferred judgment shall, upon conviction, be guilty of a
22 Class C2 felony offense and shall participate in an assessment and
23 evaluation pursuant to subsection H of this section and shall be
24 sentenced to:

1 a. follow all recommendations made in the assessment and
2 evaluation for treatment at the defendant's expense,

3 b. use of an ignition interlock device, as provided by
4 subparagraph n of paragraph 1 of subsection A of
5 Section 991a of Title 22 of the Oklahoma Statutes,

6 c. ~~imprisonment in the custody of the Department of~~
7 ~~Corrections for not less than one (1) year and not~~
8 ~~more than five (5) years~~ as provided for in
9 subsections B through F of Section 20M of Title 21 of
10 the Oklahoma Statutes, and

11 d. a fine not more than Two Thousand Five Hundred Dollars
12 (\$2,500.00).

13 However, if the treatment in subsection H of this section does
14 not include residential or inpatient treatment for a period of not
15 less than five (5) days, the person shall serve a term of
16 imprisonment of at least five (5) days.

17 3. Any person who commits a violation of this section after
18 having been convicted of a felony offense pursuant to the provisions
19 of this section or a violation pursuant to the provisions of any law
20 of this state or another state prohibiting the offenses provided for
21 in this section, Section 11-904 of this title, or paragraph 4 of
22 subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes
23 shall be guilty of a Class B4 felony offense and participate in an
24

1 assessment and evaluation pursuant to subsection H of this section
2 and shall be sentenced to:

- 3 a. follow all recommendations made in the assessment and
4 evaluation for treatment at the defendant's expense,
- 5 b. two hundred forty (240) hours of community service,
- 6 c. use of an ignition interlock device, as provided by
7 subparagraph n of paragraph 1 of subsection A of
8 Section 991a of Title 22 of the Oklahoma Statutes,
- 9 d. imprisonment in the custody of the Department of
10 Corrections for not less than one (1) year and not
11 more than ten (10) years, and
- 12 e. a fine not more than Five Thousand Dollars
13 (\$5,000.00).

14 However, if the treatment in subsection H of this section does
15 not include residential or inpatient treatment for a period of not
16 less than ten (10) days, the person shall serve a term of
17 imprisonment of at least ten (10) days.

18 4. Any person who commits a violation of this section after
19 having been twice convicted of a felony offense pursuant to the
20 provisions of this section or a violation pursuant to the provisions
21 of any law of this state or another state prohibiting the offenses
22 provided for in this section, Section 11-904 of this title, or
23 paragraph 4 of subsection A of Section 852.1 of Title 21 of the
24 Oklahoma Statutes shall be guilty of a Class B3 felony offense and

1 participate in an assessment and evaluation pursuant to subsection H
2 of this section and shall be sentenced to:

- 3 a. follow all recommendations made in the assessment and
4 evaluation for treatment at the defendant's expense,
5 followed by not less than one (1) year of supervision
6 and periodic testing, as provided in subparagraph q of
7 paragraph 1 of subsection A of Section 991a of Title
8 22 of the Oklahoma Statutes, at the defendant's
9 expense,
- 10 b. four hundred eighty (480) hours of community service,
- 11 c. use of an ignition interlock device, as provided by
12 subparagraph n of paragraph 1 of subsection A of
13 Section 991a of Title 22 of the Oklahoma Statutes, for
14 a minimum of ninety (90) days,
- 15 d. imprisonment in the custody of the Department of
16 Corrections for not less than one (1) year and not
17 more than twenty (20) years, and
- 18 e. a fine not more than Five Thousand Dollars
19 (\$5,000.00).

20 However, if the person does not undergo residential or inpatient
21 treatment pursuant to subsection H of this section, the person shall
22 serve a term of imprisonment of at least ten (10) days.

23 5. Any person who, after a previous conviction of a violation
24 of murder in the second degree or manslaughter in the first degree

1 in which the death was caused as a result of driving under the
2 influence of alcohol or other intoxicating substance, is convicted
3 of a violation of this section shall be guilty of a Class A2 felony
4 offense and shall be punished by imprisonment in the custody of the
5 Department of Corrections for not less than five (5) years and not
6 to exceed twenty (20) years, and a fine not more than Ten Thousand
7 Dollars (\$10,000.00).

8 6. Provided, however, a conviction from another state shall not
9 be used to enhance punishment pursuant to the provisions of this
10 subsection if that conviction is based on a blood or breath alcohol
11 concentration of less than eight-hundredths (0.08).

12 7. In any case in which a defendant is charged with driving
13 under the influence of alcohol or other intoxicating substance
14 offense within any municipality with a municipal court other than a
15 court of record, the charge shall be presented to the county's
16 district attorney and filed with the district court of the county
17 within which the municipality is located.

18 D. Any person who is convicted of a violation of driving under
19 the influence while also committing one of more of the following
20 acts:

21 1. Driving, operating, or being in actual physical control of a
22 motor vehicle while having a blood or breath alcohol concentration
23 of fifteen-hundredths (0.15) or more at the time of a test of such
24 person's blood or breath;

1 2. Causing a motor vehicle incident involving one or more
2 vehicles that results in a report pursuant to Section 40-102 of this
3 title;

4 3. Driving in a manner that violates the provisions of Section
5 11-301, 11-302, 11-306, 11-309, or 11-311 of this title;

6 4. Driving while eluding peace officers pursuant to Section
7 540a of Title 21 of the Oklahoma Statutes;

8 5. Driving with a speed in excess of twenty (20) miles per hour
9 over the speed limit or ten (10) miles per hour over the speed limit
10 within an active school zone;

11 6. Operating a motor vehicle with a passenger younger than
12 eighteen (18) years of age; or

13 7. Reckless driving as defined in Section 11-901 of this title,
14 shall, upon conviction, be guilty of aggravated driving under the
15 influence, which shall be a Class B3 felony offense.

16 E. A person convicted of aggravated driving under the influence
17 shall participate in an assessment and evaluation pursuant to
18 subsection H of this section and shall comply with all
19 recommendations for treatment. Such person shall be sentenced as
20 provided in paragraph 1, 2, 3, 4, or 5 of subsection C of this
21 section and to:

22 1. Imprisonment as provided in paragraph 1, 2, 3, 4, or 5 of
23 subsection C of this section, provided that:

1 a. for a first offense of a violation pursuant to this
2 section, the first ten (10) days of the sentence shall
3 not be subject to probation, suspension, or deferral
4 and may be served by night or weekend incarceration
5 pursuant to Section 991a of Title 22 of the Oklahoma
6 Statutes,

7 b. for a second offense of a violation pursuant to this
8 section, the first thirty (30) days of the sentence
9 shall not be subject to probation, suspension, or
10 deferral; provided further, this mandatory minimum
11 period of confinement shall be served in the county
12 jail as a condition of a suspended or deferred
13 sentence, pursuant to Section 991a of Title 22 of the
14 Oklahoma Statutes, and

15 c. the portion of the sentence not subject to probation,
16 suspension, or deferral shall increase by thirty (30)
17 days for each subsequent conviction after the second
18 offense;

19 2. A fine pursuant to paragraph 1, 2, 3, 4, or 5 of subsection
20 C of this section;

21 3. Not less than one (1) year of supervision and periodic
22 testing, as provided in subparagraph q of paragraph 1 of subsection
23 A of Section 991a of Title 22 of the Oklahoma Statutes, at the
24 defendant's expense; and

1 4. An ignition interlock device or devices, as provided by
2 subparagraph n of paragraph 1 of subsection A of Section 991a of
3 Title 22 of the Oklahoma Statutes, for a minimum of one hundred
4 eighty (180) days.

5 F. When a person is sentenced to imprisonment in the custody of
6 the Department of Corrections, the person shall be processed through
7 the Lexington Assessment and Reception Center or at a place
8 determined by the Director of the Department of Corrections. The
9 Department of Corrections shall classify and assign the person to
10 one or more of the following:

11 1. The Department of Mental Health and Substance Abuse Services
12 pursuant to paragraph 1 of subsection A of Section 612 of Title 57
13 of the Oklahoma Statutes; or

14 2. A correctional facility operated by the Department of
15 Corrections with assignment to substance abuse treatment.
16 Successful completion of a Department-of-Corrections-approved
17 substance abuse treatment program shall satisfy the recommendation
18 for a ten-hour or twenty-four-hour alcohol and drug substance abuse
19 course or treatment program or both. Successful completion of an
20 approved Department of Corrections substance abuse treatment program
21 may precede or follow the required assessment.

22 G. Service Oklahoma is hereby authorized to reinstate any
23 suspended or revoked driving privilege when the person meets the
24 statutory requirements which affect the existing driving privilege.

1 H. Any person who is found guilty of a violation of the
2 provisions of this section shall be ordered to participate in an
3 alcohol and drug substance abuse evaluation and assessment program
4 offered by a certified assessment agency or certified assessor for
5 the purpose of evaluating and assessing the receptivity to treatment
6 and prognosis of the person and shall follow all recommendations
7 made in the assessment and evaluation for treatment. The court
8 shall order the person to reimburse the agency or assessor for the
9 evaluation and assessment. Payment shall be remitted by the
10 defendant or on behalf of the defendant by any third party, provided
11 no state-appropriated funds are utilized. The fee for an evaluation
12 and assessment shall be the amount provided in subsection C of
13 Section 3-460 of Title 43A of the Oklahoma Statutes. The evaluation
14 and assessment shall be conducted at a certified assessment agency,
15 the office of a certified assessor, or at another location as
16 ordered by the court. The agency or assessor shall, within seventy-
17 two (72) hours from the time the person is evaluated and assessed,
18 submit a written report to the court for the purpose of assisting
19 the court in its sentencing determination. The court shall, as a
20 condition of any sentence imposed, including deferred and suspended
21 sentences, require the person to participate in and successfully
22 complete all recommendations from the evaluation, such as an alcohol
23 and substance abuse treatment program pursuant to Section 3-452 of
24 Title 43A of the Oklahoma Statutes. If such report indicates that

1 the evaluation and assessment shows that the defendant would benefit
2 from a ten-hour or twenty-four-hour alcohol and drug substance abuse
3 course or a treatment program or both, the court shall, as a
4 condition of any sentence imposed, including deferred and suspended
5 sentences, require the person to follow all recommendations
6 identified by the evaluation and assessment and ordered by the
7 court. No person, agency, or facility operating an evaluation and
8 assessment program certified by the Department of Mental Health and
9 Substance Abuse Services shall solicit or refer any person evaluated
10 and assessed pursuant to this section for any treatment program or
11 substance abuse service in which such person, agency, or facility
12 has a vested interest; however, this provision shall not be
13 construed to prohibit the court from ordering participation in or
14 any person from voluntarily utilizing a treatment program or
15 substance abuse service offered by such person, agency, or facility.
16 If a person is sentenced to imprisonment in the custody of the
17 Department of Corrections and the court has received a written
18 evaluation report pursuant to the provisions of this subsection, the
19 report shall be furnished to the Department of Corrections with the
20 judgment and sentence. Any evaluation and assessment report
21 submitted to the court pursuant to the provisions of this subsection
22 shall be handled in a manner which will keep such report
23 confidential from the general public's review. Nothing contained in
24 this subsection shall be construed to prohibit the court from

1 ordering judgment and sentence in the event the defendant fails or
2 refuses to comply with an order of the court to obtain the
3 evaluation and assessment required by this subsection. If the
4 defendant fails or refuses to comply with an order of the court to
5 obtain the evaluation and assessment, Service Oklahoma shall not
6 reinstate driving privileges until the defendant has complied in
7 full with such order. Nothing contained in this subsection shall be
8 construed to prohibit the court from ordering judgment and sentence
9 and any other sanction authorized by law for failure or refusal to
10 comply with an order of the court.

11 I. Any person who is found guilty of a violation of the
12 provisions of this section shall be required by the court to attend
13 a victims impact panel program, as defined in subsection H of
14 Section 991a of Title 22 of the Oklahoma Statutes, if such a program
15 is offered in the county where the judgment is rendered, and to pay
16 a fee of Seventy-five Dollars (\$75.00), as set by the governing
17 authority of the program and approved by the court, to the program
18 to offset the cost of participation by the defendant, if in the
19 opinion of the court the defendant has the ability to pay such fee.

20 J. Any person who is found guilty of a felony violation of the
21 provisions of this section shall be required to submit to electronic
22 monitoring as authorized and defined by Section 991a of Title 22 of
23 the Oklahoma Statutes.

24

1 K. Any person who is found guilty of a violation of the
2 provisions of this section who has been sentenced by the court to
3 perform any type of community service shall not be permitted to pay
4 a fine in lieu of performing the community service.

5 ~~L. When a person is found guilty of a violation of the~~
6 ~~provisions of this section, the court shall order, in addition to~~
7 ~~any other penalty, the defendant to pay an assessment of One Hundred~~
8 ~~Dollars (\$100.00) to be deposited in the Drug Abuse Education and~~
9 ~~Treatment Revolving Fund created in Section 2-503.2 of Title 63 of~~
10 ~~the Oklahoma Statutes, upon collection.~~

11 ~~M.~~ 1. When a person is eighteen (18) years of age or older,
12 and is the driver, operator, or person in physical control of a
13 vehicle, and is convicted of violating any provision of this section
14 while transporting or having in the motor vehicle any child less
15 than eighteen (18) years of age, the fine shall be enhanced to
16 double the amount of the fine imposed for the underlying driving
17 under the influence (DUI) violation which shall be in addition to
18 any other penalties allowed by this section.

19 2. Nothing in this subsection shall prohibit the prosecution of
20 a person pursuant to Section 852.1 of Title 21 of the Oklahoma
21 Statutes who is in violation of any provision of this section or
22 Section 11-904 of this title.

23 ~~N.~~ M. Any plea of guilty, nolo contendere, or finding of guilt
24 for a violation of this section or a violation pursuant to the

1 provisions of any law of this state or another state prohibiting the
2 offenses provided for in this section, Section 11-904 of this title,
3 or paragraph 4 of subsection A of Section 852.1 of Title 21 of the
4 Oklahoma Statutes shall constitute a conviction of the offense for
5 the purpose of this section; provided, any deferred judgment shall
6 only be considered to constitute a conviction for a period of ten
7 (10) years following the completion of any court-imposed
8 probationary term.

9 ~~Ø.~~ N. If qualified by knowledge, skill, experience, training,
10 or education, a witness shall be allowed to testify in the form of
11 an opinion or otherwise solely on the issue of impairment, but not
12 on the issue of specific alcohol concentration level, relating to
13 the following:

14 1. The results of any standardized field sobriety test
15 including, but not limited to, the horizontal gaze nystagmus (HGN)
16 test administered by a person who has completed training in
17 standardized field sobriety testing; or

18 2. Whether a person was under the influence of one or more
19 impairing substances and the category of such impairing substance or
20 substances. A witness who has received training and holds a current
21 certification as a drug recognition expert shall be qualified to
22 give the testimony in any case in which such testimony may be
23 relevant.

1 SECTION 68. REPEALER 47 O.S. 2021, Section 11-902, as
2 amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025,
3 Section 11-902), is hereby repealed.

4 SECTION 69. REPEALER 47 O.S. 2021, Section 11-902, as
5 amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025,
6 Section 11-902), is hereby repealed.

7 SECTION 70. REPEALER 47 O.S. 2021, Section 11-902, as
8 amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025,
9 Section 11-902), is hereby repealed.

10 SECTION 71. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14

15 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 04/06/2026 - DO PASS.

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